

Iran's Nuclear Program: Tehran's Compliance with International Obligations

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Iran ratified the nuclear Nonproliferation Treaty (NPT) in 1970 and per the treaty's requirements, concluded a comprehensive safeguards agreement with the International Atomic Energy Agency (IAEA) in 1974. Such agreements empower the agency to detect the diversion of nuclear material from peaceful purposes, as well as to detect undeclared nuclear activities and materials. These agreements require governments to declare their entire inventory of certain nuclear materials and related facilities.

On September 24, 2005, the IAEA Board of Governors adopted a resolution finding Iran in noncompliance with the government's IAEA safeguards agreement. Subsequently, several UN Security Council resolutions adopted between 2006 and 2010 required Iran to cooperate fully with an IAEA investigation of Tehran's nuclear activities, suspend Iran's uranium enrichment program, suspend its construction of a heavy-water reactor and related projects, ratify the additional protocol to Iran's IAEA safeguards agreement, and apply a specific provision of the subsidiary arrangements for that agreement. Iran did not comply with most of the resolutions' provisions.

Iran and the IAEA agreed in August 2007 on a work plan to clarify outstanding questions regarding Tehran's nuclear program, but "possible military dimensions to Iran's nuclear programme" remained unresolved for years. In 2015, the then agency Director General Yukiya Amano issued a report to the IAEA Board of Governors containing the agency's "final assessment on the resolution" of these questions.

Pursuant to the July 2015 Joint Comprehensive Plan of Action (JCPOA), which Iran concluded with China, France, Germany, Russia, the United Kingdom (UK), and the United States, Tehran implemented various restrictions on, and provided the IAEA with additional information about, the government's nuclear program. On July 20, 2015, the UN Security Council adopted Resolution 2231 (2015) to implement the JCPOA and other provisions concerning Iran's nuclear program. All of the previous Security Council resolutions' requirements were terminated on the JCPOA's Implementation Day, which took place in January 2016.

Since President Trump announced in May 2018 that the United States will no longer participate in the JCPOA, Iran has conducted nuclear activities that exceed JCPOA-mandated limits, and the IAEA's ability to monitor Iran's nuclear program has decreased. Tehran has since February 2021 prevented the agency from conducting JCPOA-specific monitoring and verification activities. In response to Iran's JCPOA violations, France, Germany, and the UK in August 2025 invoked a mechanism contained in the JCPOA and Resolution 2231, known as "snapback," which reimposed the aforementioned UN Security Council resolutions' requirements. The IAEA Board of Governors adopted a resolution on November 20, 2025, requesting the director general to issue quarterly reports concerning the "implementation" of Iran's safeguards agreement, as well as the relevant provisions of the Security Council resolutions adopted between 2006 and 2010.

With regard to Iran's comprehensive safeguards agreement, the board of governors adopted a series of resolutions beginning in June 2020 calling on Iran to satisfy more recent agency requests concerning additional possible undeclared nuclear activities in Iran. These resolutions do not contain any formal findings of noncompliance with Tehran's IAEA safeguards agreement. However, a June 12, 2025, IAEA board resolution found Iran in noncompliance with that safeguards agreement.

The IAEA has not been able to conduct safeguards activities on Iranian nuclear facilities attacked by the United States and Israel in June 2025. The agency has stopped conducting almost all safeguards activities in the country since February 28, 2026, when the United States and Israel launched military attacks on Iran.

This report provides a brief overview of Iran's nuclear program and describes the basis for the actions taken by the IAEA board and the Security Council. The report will be updated as events warrant.

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Introduction

Iran ratified the nuclear Nonproliferation Treaty (NPT) in 1970.¹ Article II of the treaty prohibits nonnuclear-weapon states-parties (NNWS) from acquiring nuclear weapons. Article III of the treaty requires² NNWS to accept comprehensive International Atomic Energy Agency (IAEA) safeguards; Tehran concluded a comprehensive safeguards agreement with the IAEA in 1974.³ In 2002, the agency began investigating allegations that Iran had conducted clandestine nuclear activities; the IAEA ultimately reported that some of these activities had violated Tehran's safeguards agreement. Following more than three years of investigation, the IAEA Board of Governors reported the matter to the UN Security Council in February 2006. The council subsequently adopted six resolutions requiring Iran to take steps to alleviate international concerns about its nuclear program. In July 2015, Iran concluded the Joint Comprehensive Plan of Action (JCPOA) with China, France, Germany, Russia, the United Kingdom (UK), and the United States (collectively known as the "P5+1"). This agreement contained various requirements that supplemented Tehran's obligations pursuant to the government's safeguards agreement. This report provides a brief overview of Iran's nuclear program and describes the basis for the actions taken by the IAEA board, the Security Council, and the P5+1.⁴

For more background on about Iran's nuclear program, see CRS Report RL34544, *Iran's Nuclear Program: Status*, by Paul K. Kerr. For more information about the JCPOA, see CRS Report R43333, *Iran Nuclear Agreement and U.S. Exit*, by Paul K. Kerr and Clayton Thomas.

Background

Iran's nuclear program has for several decades generated widespread concern that Tehran is pursuing nuclear weapons.⁵ However, Tehran's construction of gas centrifuge uranium enrichment facilities has been the main source of proliferation concern since August 2002, when an Iranian exile group revealed information during a press conference (some of which later proved to be accurate) that Iran had built nuclear-related facilities that the government had not revealed to the IAEA.⁶

Gas centrifuges enrich uranium by spinning uranium hexafluoride gas at high speeds to increase the concentration of the uranium-235 isotope. Such centrifuges can produce both low-enriched uranium (LEU), which can be used in nuclear power reactors, and highly enriched uranium (HEU), which is one of the two types of fissile material used in nuclear weapons. HEU can also

¹ The text of the treaty is available at International Atomic Energy Agency (IAEA), "NPT - The Full Text," pp. 11-17, <https://www.iaea.org/sites/default/files/publications/magazines/bulletin/bull10-4/10403501117.pdf>.

² The Nonproliferation Treaty (NPT) defines a *nuclear-weapon state* as "one which has manufactured and exploded a nuclear weapon or other nuclear explosive device" prior to January 1, 1967. These states are China, France, Russia, the United Kingdom, and the United States. Article II of the NPT requires all other states-parties to refrain from producing or otherwise obtaining nuclear weapons.

³ IAEA, *The Text of the Agreement Between Iran and the Agency for The Application of Safeguards in Connection with the Treaty on the Non-proliferation of Nuclear Weapons*, INFCIRC/214, December 13, 1974.

⁴ Although, for practical purposes, the Joint Comprehensive Plan of Action (JCPOA) is no longer in force, this report describes the agreement's requirements in the present tense because the JCPOA has no withdrawal clause and has never officially been terminated. This report also describes UN Security Council Resolution 2231's requirements in the present tense because that resolution is still in force.

⁵ U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation, and Disarmament Agreements and Commitments*, August 2005.

⁶ CRS Report RL34544, *Iran's Nuclear Program: Status*, by Paul K. Kerr.

be used as fuel in certain types of nuclear reactors. Individual centrifuges are linked together in cascades for producing enriched uranium in quantity. Iran also has a uranium conversion facility, which converts uranium ore concentrate into several chemical compounds, including uranium hexafluoride. Tehran's stated goal is to produce fuel for the government's current and future power reactors.

Prior to June 2025 Israeli and U.S. attacks on Iran, which included strikes on some Iranian nuclear facilities, Iran was producing enriched uranium in its Natanz and Fordow enrichment facilities. The then Director of National Intelligence Tulsi Gabbard testified on March 18, 2026, that Iran had not resumed enriching uranium; Iranian Ambassador to the IAEA Reza Najafi repeated this claim.⁷ Iran's Foreign Minister Seyed Abbas Araghchi stated in the same month that the country's enriched uranium is "under the rubble" created by the June 2025 attacks on Iran's enrichment facilities. Iran has "no plan" to recover this material, he added.⁸

Iran's construction of a reactor moderated by heavy water has also been a source of proliferation concern. Although Tehran says that the reactor, which Iran is building at Arak, is intended for the production of medical isotopes, the reactor was a proliferation concern because the reactor's spent fuel would have contained plutonium well-suited for use in nuclear weapons. In order to be used in nuclear weapons, however, plutonium must be separated from the spent fuel—a procedure called "reprocessing." CRS is unaware of evidence that Iran has possessed a reprocessing facility; the government has repeatedly stated its intention to refrain from reprocessing. Pursuant to the Joint Comprehensive Plan of Action (JCPOA), which Iran concluded in July 2015 with the P5+1, Tehran rendered the Arak reactor's original core inoperable and began to fulfill a JCPOA requirement to redesign and rebuild the Arak reactor based on a P5+1-agreed design; this design is meant to prevent Iran from using the reactor to produce weapons-grade plutonium. The JCPOA also requires Iran to export the spent fuel from this reactor and all other nuclear reactors.

Iran and the IAEA agreed in August 2007 on a work plan to clarify the outstanding questions regarding Tehran's nuclear program.⁹ Tehran and the agency subsequently resolved most of these questions that had contributed to suspicions that Iran had been pursuing a nuclear weapons program.¹⁰ The then IAEA Director General Mohamed ElBaradei, however, told the agency board on June 2, 2008, that there was "one remaining major [unresolved] issue" regarding "possible military dimensions to Iran's nuclear programme."¹¹ The IAEA did not make any substantive progress on these matters for some time (see "Post-September 2005 Noncompliance and Potential Noncompliance").

⁷ U.S. Congress, Senate Select Committee on Intelligence, *Open Hearing: Worldwide Threats*, 119th Cong., 2nd sess., March 18, 2026; and Agence France-Presse (AFP), "Iran Not Looking to 'Restart' Uranium Enrichment, Atomic Envoy Tells AFP," April 2, 2026.

⁸ Face The Nation, "Iran's Abbas Araghchi, Kevin Hassett and more | Face the Nation Full Broadcast - March 15, 2026," YouTube video, 9:57, March 16, 2026, <https://www.youtube.com/watch?v=39k8N4bcD2k&t=597s>.

⁹ IAEA, *Communication Dated 27 August 2007 from the Permanent Mission of the Islamic Republic of Iran to the Agency Concerning the Text of the "Understandings of the Islamic Republic of Iran and the IAEA on the Modalities of Resolution of the Outstanding Issues,"* INFCIRC/711, August 27, 2007.

¹⁰ Atomic Energy Organization of Iran President Ali Akbar Salehi explained in a 2009 interview that Tehran "decided to solve these problems within the context of our [safeguards] commitments and not accept anything beyond our legal obligations," adding that there had previously been "debates about the decreasing of the level of our cooperation" with the IAEA. See "Interview: Dr. Salehi on Iran's Nuclear Program," in *Discourse: An Iranian Quarterly*, vol. 9, nos. 1-2 (Fall 2009-Winter 2010), p. 1.

¹¹ IAEA, "Introductory Statement to the Board of Governors (Dr. Mohamed ElBaradei)," June 1, 2008.

Tehran disputed the authenticity of some evidence underlying the agency's concerns and maintained that Iran had not conducted any work on nuclear weapons.¹² Iran also expressed concern to the IAEA that resolving some of these issues would have required agency inspectors to have "access to sensitive information related to its conventional military and missile related activities."¹³ The IAEA, according to a September 2008 report from ElBaradei, stated its willingness to discuss with Iran

modalities that could enable Iran to demonstrate credibly that the activities referred to in the documentation are not nuclear related, as Iran asserts, while protecting sensitive information related to its conventional military activities.¹⁴

Indeed, the agency made several specific proposals, but Tehran did not provide the requested information.¹⁵

The IAEA Board of Governors adopted a resolution on November 18, 2011, stating that "it is essential" for Iran and the IAEA "to intensify their dialogue aiming at the urgent resolution of all outstanding substantive issues."¹⁶ IAEA and Iranian officials met 10 times between January 2012 and May 2013 to discuss what the agency termed a "structured approach to the clarification of all outstanding issues related to Iran's nuclear programme." During an October 2013 meeting, IAEA officials and their Iranian counterparts decided to adopt a "new approach" to resolving these issues.¹⁷

Iran signed a joint statement with the IAEA on November 11, 2013, describing a "Framework for Cooperation."¹⁸ According to the statement, Iran and the IAEA agreed to "strengthen their cooperation and dialogue aimed at ensuring the exclusively peaceful nature of Iran's nuclear programme through the resolution of all outstanding issues that have not already been resolved by the IAEA." Iran subsequently provided the agency with information about several of the outstanding issues. The government of Iran later agreed in May 2014 to provide information to the IAEA by August 25, 2014, about five additional issues potentially related to nuclear weapons development, including alleged Iranian research on high explosives and "studies made and/or papers published in Iran in relation to neutron transport and associated modelling and calculations

¹² See, for example, IAEA, *Communication Dated 7 January 2016 Received from the Permanent Mission of the Islamic Republic of Iran to the Agency Regarding the Report of the Director General on the Final Assessment on Past and Present Outstanding Issues Regarding Iran's Nuclear Programme*, INFCIRC/893, January 8, 2016.

¹³ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008) in the Islamic Republic of Iran: Report by the Director General*, GOV/2008/38, September 15, 2008.

¹⁴ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2008/38.

¹⁵ See, for example, IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2012/23, May 25, 2012.

¹⁶ A September 2012 IAEA Board of Governors resolution reiterated the board's support for the agency's negotiations with Tehran and stated that "Iranian cooperation with IAEA requests aimed at the resolution of all outstanding issues is essential and urgent in order to restore international confidence in the exclusively peaceful nature of Iran's nuclear programme" (IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of United Nations Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2012/50, September 13, 2012).

¹⁷ IAEA, "Joint Statement by IAEA and Islamic Republic of Iran," October 29, 2013.

¹⁸ IAEA, "Joint Statement on a Framework for Cooperation," November 11, 2013.

and their alleged application to compressed materials.”¹⁹ Iran subsequently provided information about four of these issues.²⁰

Pursuant to the July 2015 JCPOA, Iran completed a series of steps set out in an Iran-IAEA “Roadmap for Clarification of Past and Present Outstanding Issues.” The then IAEA Director General Yukiya Amano explained in a July 2015 statement that this road map set out “a process ... to enable the Agency, with the cooperation of Iran, to make an assessment of issues relating to possible military dimensions to Iran’s nuclear programme.”²¹ According to a December 2, 2015, report from Amano to the IAEA Board of Governors, “[a]ll the activities contained in the road-map were implemented in accordance with the agreed schedule.”²² The road map required Amano to present this report, which contains the agency’s “final assessment on the resolution” of the aforementioned outstanding issues.

In response, the board adopted a resolution on December 15, 2015, noting Iran’s cooperation with the road map and stating “that this closes the Board’s consideration” of the “outstanding issues regarding Iran’s nuclear programme.”²³ The IAEA verified that Iran took the steps required for Implementation Day to take effect, and the board ceased to be focused on Iran’s compliance with past Security Council resolutions. Instead, the board focused on monitoring and verifying Iran’s JCPOA implementation “in light of” UN Security Council Resolution 2231, which the council adopted on July 20, 2015. This Security Council resolution requested the IAEA director general “to undertake the necessary verification and monitoring of Iran’s nuclear-related commitments for the full duration of those commitments under the JCPOA.”

The December 2015 IAEA resolution requested the director general to issue quarterly reports to the board regarding Iran’s “implementation of its relevant commitments under the JCPOA for the full duration of those commitments.” The director general was also to report to the Board of Governors and the Security Council “at any time if the Director General” had “reasonable grounds to believe there” was “an issue of concern” regarding Tehran’s compliance with its JCPOA or IAEA safeguards obligations. Resolution 2231 also contains a variety of reporting provisions, which are included in the JCPOA, for the IAEA. For example, the resolution requests the agency’s director general

to provide regular updates to the IAEA Board of Governors and, as appropriate, in parallel to the Security Council on Iran’s implementation of its commitments under the JCPOA and also to report to the IAEA Board of Governors and in parallel to the Security Council at

¹⁹ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2015/34, May 29, 2015.

²⁰ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2015/34.

²¹ IAEA, “IAEA Director General’s Statement and Road-map for the Clarification of Past and Present Outstanding Issues Regarding Iran’s Nuclear Programme,” July 14, 2015. For more information about the Joint Plan of Action and the JCPOA, see CRS Report R43333, *Iran Nuclear Agreement and U.S. Exit*, by Paul K. Kerr and Clayton Thomas.

²² IAEA, *Final Assessment on Past and Present Outstanding Issues Regarding Iran’s Nuclear Programme: Report by the Director General*, GOV/2015/68, December 2, 2015.

²³ IAEA, *Joint Comprehensive Plan of Action Implementation and Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2015/72, December 15, 2015. An 2019 State Department report notes that this resolution

does not preclude the IAEA from investigating any information that is new or inconsistent with its previous assessment of Iran’s past nuclear weapons program, or where it has concerns regarding the potential existence of undeclared nuclear materials or activities.

(U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation, and Disarmament Agreements and Commitments*, April 2019).

any time if the Director General has reasonable grounds to believe there is an issue of concern directly affecting fulfilment of JCPOA commitments.

The IAEA reported findings of its inspection and monitoring activities. The JCPOA-established joint commission monitored the parties' implementation of the agreement but did not determine whether Iran was complying with its JCPOA obligations. Such determinations were national decisions.

In August 2025, France, Germany, and the UK (collectively known as the "E3") invoked a mechanism contained in the JCPOA and Resolution 2231 (2015), known as "snapback," which reimposed the requirements of Security Council resolutions adopted between 2006 and 2010 (see "Iran and the UN Security Council"). A November 20, 2025, IAEA Board of Governors resolution requests the agency's director general to issue quarterly reports concerning the "implementation" of Iran's safeguards agreement, as well as the relevant provisions of the Security Council resolutions adopted between 2006 and 2010 (see "Iran and the UN Security Council").²⁴ IAEA Director General Rafael Grossi has continued to provide reports to the board regarding Iran's JCPOA implementation.

The Joint Comprehensive Plan of Action

Pursuant to the JCPOA, which is effectively no longer in force, Iran applied additional restrictions on its uranium enrichment program and heavy-water reactor program. The government also began implementing the additional protocol to Tehran's comprehensive safeguards agreement, as well as the modified Code 3.1 of the subsidiary arrangements for that safeguards agreement (see "Design Information Provision"). On the JCPOA's Implementation Day, which took place on January 16, 2016, all of the previous Security Council resolutions' requirements were terminated pursuant to UN Security Council Resolution 2231. Prior to the August 2025 invocation of snapback, the legal framework governing Iran's nuclear program comprised Resolution 2231 and the NPT.²⁵

Iran complied with its JCPOA obligations. But on May 8, 2018, President Trump, noting that the two sides had been unable to reach a new agreement concerning Iran's nuclear program, announced that the United States would no longer participate in the JCPOA and would reimpose sanctions that had been suspended pursuant to the agreement.²⁶ Until July 2019, official reports and statements from the United Nations, European Union, the IAEA, and the non-U.S. participating governments indicated that Iran had fulfilled its JCPOA and related Resolution 2231 requirements.²⁷

²⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71, November 20, 2025.

²⁵ European Union, "Joint Statement by EU High Representative Federica Mogherini and Iranian Foreign Minister Javad Zarif," January 16, 2016. For a list of IAEA reports about Iran's JCPOA implementation beginning July 1, 2029, see **Appendix D**.

²⁶ White House, "Ceasing U.S. Participation in the JCPOA and Taking Additional Action to Counter Iran's Malign Influence and Deny Iran All Paths to a Nuclear Weapon," presidential memorandum of May 8, 2018.

²⁷ Iran's stock of heavy water exceeded the JCPOA-required limit of 130 metric tons on two occasions since the P5+1 began implementing the agreement. "In both instances, this issue was resolved after Iran shipped out sufficient amounts of material to get back under the limit," the State Department reported in April 2017 (U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation, and Disarmament Agreements and Commitments*, April 2017). For more information, see CRS Report R43333, *Iran Nuclear Agreement and U.S. Exit* and CRS Report RL34544, *Iran's Nuclear Program: Status*, by Paul K. Kerr. Beginning in November 2019, IAEA reports have noted that Iran has on several occasions exceeded the JCPOA-required limit. Tehran since February 23, 2021, has not allowed (continued...)

Beginning in July 2019, the IAEA verified that some of Iran's nuclear activities were exceeding JCPOA-mandated limits; Iran has since increased the number of activities that violate JCPOA restrictions (see **Appendix A**). According to IAEA reports, Iran's number of installed centrifuges, enriched uranium stockpile, enriched uranium u-235 concentration, and number of enrichment locations exceed JCPOA-mandated limits. Tehran is also conducting JCPOA-prohibited research and development (R&D) activities, as well as centrifuge installation.

In a May 8, 2019, speech, Iranian President Hassan Rouhani cited JCPOA Paragraph 26 as grounds for reducing Iran's performance of some Iranian commitments pursuant to the agreement.²⁸ According to that paragraph,

Iran has stated that it will treat such a re-introduction or re-imposition of the sanctions specified in Annex II, or such an imposition of new nuclear-related sanctions, as grounds to cease performing its commitments under this JCPOA in whole or in part.

Iran has also cited JCPOA Paragraph 36 as grounds for ending all JCPOA-mandated transparency measures that supplement the government's comprehensive safeguards agreement.²⁹ Paragraph 36 states that if Iran "believed that any or all of the E3/EU+3 were not meeting their commitments under this JCPOA, Iran could refer the issue to the Joint Commission for resolution." Iran could treat a commission failure to resolve the issue as "grounds to cease performing its commitments under this JCPOA in whole or in part."

The JCPOA established a dispute resolution mechanism (DRM) governing disputes over alleged breaches of their JCPOA commitments. The then Iranian Foreign Minister Javad Zarif explained in a May 2018 letter to the UN Secretary General that Tehran had "specified measures" to be "taken through the Joint Commission to address the wrongful acts by the United States against Iran and international law, including its unlawful withdrawal from the accord and the reimposition of sanctions."³⁰ Iran, the letter explained, had

decided to resort to the JCPOA [Dispute Resolution Mechanism] in good faith to find solutions in order to rectify the United States' multiple cases of significant non-performance and its unlawful withdrawal, and to determine whether and how the remaining

the IAEA to monitor or verify Iran's heavy water production.

According to a May 31, 2019, report from the then IAEA Director General Amano, Iran had conducted research and development using advanced centrifuges; the number of these centrifuges may have exceeded the number permitted by the JCPOA (IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2019/21, May 31, 2019; IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2019/32, August 30, 2019). In a June 11, 2019, speech to the IAEA Board of Governors, the then U.S. Ambassador Jackie Wolcott stated that this activity has violated the JCPOA. However, no JCPOA participating government appears to have issued a similar public finding. Moreover, EU High Representative Mogherini stated during a June 17, 2019, press conference that "Iran is still compliant" with the JCPOA (European Union, European External Access Service [EEAS], "Remarks by High Representative/Vice-President Federica Mogherini at the press conference following the Foreign Affairs Council," June 17, 2019).

²⁸ See also IAEA, *Communication Dated 29 January 2021 from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/953, February 2, 2021.

²⁹ IAEA, *Communication Dated from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1131, September 14, 2023; and United Nations, *Letter dated 2 December 2024 from the Permanent Representative of the Islamic Republic of Iran to the United Nations Addressed to the Secretary-General*, S/2024/874, December 2, 2024.

³⁰ United Nations, *Letter Dated 11 May 2018 from the Permanent Representative of the Islamic Republic of Iran to the United Nations Addressed to the Secretary-General*, A/72/869-S/2018/453, May 22, 2018. See also IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1310, September 2, 2025.

JCPOA participants and other economic partners can ensure the full benefits that the Iranian people are entitled to derive from this global diplomatic achievement.³¹

The E3 foreign ministers stated on January 14, 2020, that “Iran is not meeting its [JCPOA] commitments” and announced that the three governments were referring the matter to the JCPOA DRM.³² A January 14, 2020, E3 letter to the then EU High Representative for Foreign Affairs and Security Policy Josep Borrell, who oversaw the mechanism’s process, referred “a matter concerning the implementation of Iran’s [JCPOA] commitments ... to the Joint Commission for resolution through” the DRM.³³ CRS has not found public evidence that any government took action under the mechanism.

A January 2020 letter from Zarif to the then EU High Representative Borrell states that “[t]hrough different formal letters to the Coordinator of the JCPOA Joint Commission, Iran has exhausted the DRM.”³⁴ On July 3, 2020, Borrell received a letter from Iran’s Foreign Minister referring Iran’s concerns regarding E3 JCPOA implementation to the joint commission.³⁵ A November 2020 E3 statement explains that those governments “do not accept the argument that Iran is entitled to reduce compliance” with the JCPOA.³⁶ However, according to the U.S. government, “under the terms of the JCPOA, Iran may cease performing commitments in whole or in part following the U.S. re-imposition of sanctions.”³⁷

Iran informed the IAEA in February 2021 that Tehran would stop implementing some of the JCPOA “voluntary transparency measures,” described above, including implementation of the additional protocol (see “IAEA Safeguards Agreement”). As a result, the Iranian government “no longer allowed” the IAEA “to conduct verification and monitoring activities in relation to the JCPOA.”³⁸

IAEA JCPOA Monitoring February 2021-June 2025

According to a November 2020 report from Director General Grossi, the IAEA had “not observed any change in the level of cooperation by Iran in relation to Agency verification and monitoring activities under the JCPOA.”³⁹ However, the IAEA’s ability to monitor Iran’s implementation of the government’s JCPOA commitments has diminished since February 2021. Iran informed the IAEA in a February 15, 2021, letter that the government, as of February 23, would stop implementing some of the JCPOA “voluntary transparency measures” described above, including implementation of the additional protocol.⁴⁰ On February 21, 2021, Iran and the IAEA “reached a

³¹ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1310.

³² Gov.UK, “E3 Foreign Ministers’ Statement on the JCPOA,” press release, January 14, 2020.

³³ EEAS, “Statement by High Representative Borrell as Coordinator of the Joint Commission of the Joint Comprehensive Plan of Action on the Dispute Resolution Mechanism,” January 14, 2020.

³⁴ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1310.

³⁵ EEAS, “JCPOA: Statement by the High Representative Josep Borrell as Coordinator of the Joint Commission of the Joint Comprehensive Plan of Action on the Dispute Resolution Mechanism,” July 3, 2020.

³⁶ Gov.UK, “E3 Statement on Iran to the IAEA Board of Governors, November 2020,” November 19, 2020.

³⁷ Email from State Department official, July 17, 2019. A State Department official reiterated this position in a January 31, 2020, interview with a CRS analyst.

³⁸ IAEA, *Verification and Monitoring in the Islamic Republic of Iran (GOV/2025/71): Report by the Director General*, GOV/INF/2026/5, February 27, 2026.

³⁹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2020/51, November 11, 2020.

⁴⁰ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council* (continued...)

temporary bilateral technical understanding ... whereby the Agency would continue with its necessary verification and monitoring activities for up to three months, as set out in a technical annex.”⁴¹

Grossi explained during a February 21, 2021, press conference that this arrangement was “not a replacement for what we used to have” under the additional protocol but “a temporary solution that allows us to continue to give the world assurances of what is going on there in the hope that we can return to a fuller picture.”⁴² According to a subsequent report from Grossi, the February 2021 agreement was meant “to enable the Agency to recover and re-establish the necessary continuity of knowledge.”⁴³ Iran agreed to continue implementing its comprehensive safeguards agreement “without limitation.”⁴⁴ Subsequent IAEA reports demonstrate that Iran adhered to this agreement. Iranian officials subsequently expressed the government’s willingness to resume implementing all of the government’s JCPOA obligations.⁴⁵

The IAEA and Iran announced on May 24, 2021, that the parties agreed to extend the above-described arrangement until June 24, 2021.⁴⁶ A later report from Director General Grossi expresses the agency’s

understanding that surveillance data from all Agency cameras installed for activities in relation to the JCPOA, as well as its on-line enrichment monitors, electronic seals or installed measurement devices, will continue to be stored and made available to the Agency if and when Iran resumes implementation [of Tehran’s JCPOA commitments].⁴⁷

However, Iran is no longer recording these data.

Resolution 2231 (2015): Report by the Director General, GOV/2021/10, February 23, 2021. The letter names the following measures: provisions of Iran’s additional protocol; modified Code 3.1 of the subsidiary arrangements to Iran’s safeguards agreement; IAEA use of modern safeguards technologies in Iran; the long term in-country presence of IAEA inspectors; transparency measures concerning Iranian uranium enrichment, uranium ore concentrate production, and centrifuge component manufacturing; unspecified IAEA access “pursuant to provisions of the JCPOA”; and unspecified monitoring and verification of Tehran’s implementation of JCPOA-mandated “voluntary measures.”

⁴¹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/10.

⁴² IAEA video, “Press Conference with IAEA Director General Rafael Grossi,” YouTube video, 6:43, February 21, 2021, <https://www.youtube.com/watch?v=LICGNTKS8P0>.

⁴³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2021/28, May 31, 2021.

⁴⁴ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/10.

⁴⁵ See, for example, Office of the Permanent Representative of the Islamic Republic of Iran to the United Nations, “Statement by H.E. Mr. Majid Takht Ravanchi Ambassador and Permanent Representative of the Islamic Republic of Iran to the United Nations Before the United Nations Security Council on ‘Non-proliferation: Implementation of Security Council Resolution 2231 (2015),’” June 30, 2022. *Fars News Agency*, “Iran Rejects IAEA’s Politically-Motivated Report, Says Peaceful N. Program Fully Transparent,” September 8, 2022; *CNN: Fareed Zakaria GPS*, “Interview with Iranian President Ebrahim Raisi,” September 24, 2023; *BBC Monitoring Newsfile*, “Iran FM Says Return of All to JCPOA ‘Not So Out of Reach,’” September 23, 2023 (citing *Iranian Students’ News Agency*); Reuters, “Iran Says It Is Committed to Resolving Nuclear Dispute Through Diplomacy,” August 14, 2023; *Islamic Republic News Agency*, “Iran Rejects Western Pressure Tactic, Calls on the IAEA to Be Impartial,” March 5, 2025; and United Nations, *Letter Dated 30 June 2025 from the Permanent Representative of the Islamic Republic of Iran to the United Nations Addressed to the Secretary-General and the President of the Security Council*, S/2025/436, June 30, 2025.

⁴⁶ IAEA, “IAEA Director General Says Agreement Reached on Verification and Monitoring in Iran,” May 24, 2021; *Islamic Republic News Agency*, “Iran Extends Agreement with IAEA for One More Month,” May 24, 2021; and *Islamic Republic News Agency*, “Envoy Confirms Iran Nuclear Chief’s Letter to IAEA,” June 1, 2021.

⁴⁷ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2022/24, May 30, 2022.

In late August 2021, the agency requested that Iran provide the IAEA with access to “all relevant locations” in Iran “in order to service the equipment and replace the storage media.”⁴⁸ The IAEA also requested that Tehran permit agency inspectors to “verify the status” of four surveillance cameras that Iran had removed from its TESA Karaj complex centrifuge component manufacturing workshop.⁴⁹ Iranian officials have explained that the government removed the cameras following a June 23, 2021, “terrorist attack in which ... the agency’s equipment was destroyed and damaged.”⁵⁰ Director General Grossi later explained that, as a result of this incident, some IAEA “equipment was affected,” adding that the agency needed to restore “monitoring capacities there.”⁵¹ The IAEA and Iran reached an agreement on September 12, 2021, that, according to an IAEA-Iran joint statement, permitted agency inspectors to “service the identified equipment and replace their storage media.”⁵²

Iran did not fully comply with this agreement, according to the IAEA. Iran permitted agency inspectors from September 20-22, 2021, to “service the identified Agency monitoring and surveillance equipment and to replace storage media, at all necessary locations in Iran,” according to a November 17, 2021, report from Grossi, which adds that Iran denied the inspectors access to the Karaj workshop.⁵³ Former Iranian Ambassador to the IAEA Kazem Gharibabadi asserted in a September 27, 2021, statement that

[d]uring the discussions in Tehran as well as in Vienna, it was clearly indicated that since that Tessa Karaj Complex is still under security and judicial investigations, the equipment related to this Complex are not included for servicing.⁵⁴

Grossi’s November 17, 2021, report contradicted Gharibabadi’s claim, explaining that the September 2021 agreement “did not in any way exclude certain locations and equipment.”⁵⁵ The IAEA installed replacement cameras in the Karaj workshop before the “end of December 2021,” pursuant to a subsequent bilateral agreement with Iran.⁵⁶ The next month, the IAEA removed the cameras from this workshop and installed cameras in another facility performing the work previously conducted at the Karaj workshop.⁵⁷ In response to an Iranian request following a June 8, 2022, IAEA Board of Governors resolution concerning outstanding issues related to Tehran’s comprehensive IAEA safeguards agreement, the agency removed “all of its equipment previously installed in Iran for surveillance and monitoring under the JCPOA.”⁵⁸

⁴⁸ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2022/24.

⁴⁹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2021/39, September 7, 2021.

⁵⁰ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/39; and *FARS News Agency*, “Envoy: No More Forbearance Expected from Iran Under Sanctions,” November 25, 2021.

⁵¹ Stephanie Cooke, “Interview: IAEA’s Grossi on Aukus, Iran and COP26,” *Energy Intelligence*, October 8, 2021.

⁵² IAEA, “Joint Statement by the Vice-President and the Head of Atomic Energy Organization of the Islamic Republic of Iran and the Director General of the International Atomic Energy Agency,” September 12, 2021.

⁵³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2021/51, November 17, 2021.

⁵⁴ Office of the Permanent Representative of the Islamic Republic of Iran to the United Nations, “Ambassador Gharibabadi’s Comments on the IAEA DG Sep 26 Report on Cameras,” September 27, 2021.

⁵⁵ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/51.

⁵⁶ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2022/4, March 3, 2022; and IAEA, “IAEA and Iran Reach Agreement on Replacing Surveillance Cameras at Karaj Facility,” press release, December 15, 2021.

⁵⁷ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2022/24.

⁵⁸ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2022/39, September 7, 2022.

According to a March 4, 2023, IAEA-Atomic Energy Organization of Iran (AEOI) joint statement, “Iran expressed its readiness to continue its cooperation and provide further information and access to address ... outstanding safeguards issues,” described below.⁵⁹ Regarding the JCPOA, Iran agreed to allow IAEA implementation of “further appropriate verification and monitoring activities.”⁶⁰ Grossi told reporters during a press conference the same day that these “activities” are the JCPOA-specific monitoring and measurement measures that Iran suspended in February 2021.⁶¹

The IAEA and Iran made limited progress in implementing the March 2023 joint statement. The agency⁶²

- installed additional monitoring devices in Iran’s Fordow and pilot enrichment facilities “in order to monitor the enrichment level” of the HEU produced in those facilities;
- resolved questions concerning the presence of HEU particles in the Fordow facility containing up to 83.7% u-235;⁶³
- resolved questions concerning the presence of nuclear material at one of three locations under IAEA investigation; and
- installed, as noted, surveillance cameras in workshops where Iran manufactures centrifuge components.

In a November 23, 2023, statement to the IAEA Board of Governors, Grossi explained that implementation of the joint statement had “come to a standstill.”⁶⁴ An Iranian letter to the IAEA dated the same day attributes the lack of progress to the IAEA’s “continued unwillingness” to discuss modalities for implementing the statement’s provisions.⁶⁵ Iran’s Permanent Mission to the IAEA made a similar claim in a May 16, 2025, letter to the agency.⁶⁶ A May 31, 2025, report from Grossi explains that during “high-level meetings over the course of 2024 and 2025, several proposals aimed at reviving the implementation of the Joint Statement of 2023 were made. Unfortunately, no significant progress has been made.”⁶⁷ Subsequent IAEA reports do not cite any progress in implementing the 2003 Joint Statement.

Echoing previous IAEA assessments, a June 4, 2026, report from Grossi notes that the IAEA’s lack of JCPOA-related verification and monitoring activities since February 2021 has “severely limited” the agency’s ability to verify Iran’s compliance with the JCPOA.⁶⁸ The IAEA has “lost

⁵⁹ IAEA, “Joint Statement by the Atomic Energy Organization of Iran (AEOI) and the International Atomic Energy Agency (IAEA),” March 4, 2023.

⁶⁰ IAEA, “Joint Statement by the AEOI and the IAEA,” March 4, 2023.

⁶¹ IAEA video, “Press Conference with IAEA Director General Rafael Grossi,” YouTube video, March 4, 2023, <https://www.youtube.com/watch?v=wLrCp0XCluA&t=29s>.

⁶² IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2023/43, September 4, 2023.

⁶³ See **Appendix A**.

⁶⁴ IAEA, “IAEA Director General’s Introductory Statement to the Board of Governors (Rafael Mariano Grossi),” November 22, 2023.

⁶⁵ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1159, November 23, 2023.

⁶⁶ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1290, May 20, 2025.

⁶⁷ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2025/25, May 31, 2025.

⁶⁸ IAEA, *Verification and Monitoring in the Islamic Republic of Iran (GOV/2025/71)*, GOV/INF/2026/9, June 4, 2026.

continuity of knowledge in relation to ... production and current inventory of centrifuges,” related components, heavy water, and uranium ore concentrate, “which cannot be restored,” according to the report, which adds that the agency “has no information to report” regarding Iran’s current implementation of the government’s JCPOA commitments.⁶⁹

IAEA Safeguards Agreement

As noted, Iran is a party to the NPT and has concluded a comprehensive safeguards agreement with the IAEA. Such agreements, which are based on a model described in an IAEA Information Circular (INFCIRC/153), require governments to declare their entire inventory of certain nuclear materials, as well as related facilities. Comprehensive Safeguards Agreements also empower the IAEA to detect the diversion of nuclear material from peaceful purposes to nuclear weapons uses, as well as to detect undeclared nuclear activities and material.⁷⁰ Safeguards include agency inspections and monitoring of declared nuclear facilities. Although comprehensive safeguards agreements give the IAEA the authority “to verify the absence of undeclared nuclear material and activities, the tools available to it to do so, under such agreements, are limited” according to the agency.⁷¹

As a practical matter, the IAEA’s ability to inspect and monitor nuclear facilities, as well as obtain related information pursuant to a particular country’s comprehensive safeguards agreement, is limited to facilities and activities that have been declared by the government. Additional protocols to IAEA comprehensive safeguards agreements increase the agency’s ability to investigate undeclared nuclear facilities and activities by increasing the IAEA’s authority to inspect certain nuclear-related facilities and demand information from member states.⁷² Iran signed such a protocol in December 2003 and agreed to implement it pending ratification. Tehran stopped adhering to its additional protocol in 2006.⁷³

The IAEA has limited authority to investigate nuclear weapons development activity that does not involve nuclear material. The then IAEA Director General Mohamed ElBaradei explained in a

⁶⁹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran* (GOV/2025/71), GOV/INF/2026/9.

⁷⁰ IAEA, *IAEA Safeguards Glossary 2022 Edition*, 2022. Comprehensive safeguards agreements are based on a model described in INFCIRC 153. According to a May 2013 report from the then Director General Amano, the IAEA Board of Governors “has confirmed on numerous occasions, since as early as 1992,” that this model agreement “authorizes and requires the Agency to seek to verify both the non-diversion of nuclear material from declared activities (i.e. correctness) and the absence of undeclared nuclear activities in the State (i.e. completeness)” (IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2013/27, May 22, 2013).

⁷¹ IAEA, *Guidance for States Implementing Comprehensive Safeguards Agreements and Additional Protocols*, IAEA Services Series 21, May 2016.

⁷² Additional protocols for an individual IAEA member state are based on the agency’s Model Additional Protocol (INFCIRC/540).

Former IAEA Office of Legal Affairs official Laura Rockwood wrote in 2022 that, prior to the IAEA’s 1991 discovery of Iraq’s secret nuclear weapons program, the agency’s

safeguards activities were, as a practical matter rather than due to a lack of legal authority, focused primarily on verifying declared nuclear material at declared facilities. Safeguards were implemented and evaluated on a facility-by-facility basis, rather than by examination of the State as a whole.

See Laura Rockwood, “IAEA Safeguards: Correctness and Completeness of States’ Safeguards Declarations,” in *Nuclear Law: The Global Debate*, ed. IAEA, (Asser Press, 2022).

⁷³ Iran announced that it would stop implementing the protocol two days after the IAEA Board of Governors adopted a resolution in February 2006 that reported Iran’s noncompliance with its IAEA safeguards agreement to the UN Security Council. Iran implemented the protocol pursuant to the JCPOA until February 2021.

2005 interview that the IAEA does not have “an all-encompassing mandate to look for every computer study on weaponization. Our mandate is to make sure that all nuclear materials in a country are declared to us.”⁷⁴ Similarly, a February 2006 report from ElBaradei to the IAEA board stated that “absent some nexus to nuclear material the agency’s legal authority to pursue the verification of possible nuclear weapons related activity is limited.”⁷⁵ There is no requirement that there be any nexus to nuclear material in order for the IAEA to request access to a facility, but there are disagreements among IAEA member states regarding the extent of the agency’s rights to access locations where nuclear material may not be present.⁷⁶ Such disagreements could play a role if the IAEA board is required to consider a request for special inspections in Iran or another country (see **Appendix B**). Therefore, the closer the connection between nuclear material and the location in question, the more likely the board would be to approve such an inspection.

A public controversy over Iran’s nuclear program began in August 2002, when the National Council of Resistance on Iran (NCRI), an Iranian exile group, revealed information during a press conference (some of which the IAEA later verified) that Tehran had built nuclear-related facilities that it had not revealed to the IAEA. The United States had been aware of at least some of these activities, according to former U.S. officials.⁷⁷

In fall 2002, the IAEA began to investigate Iran’s nuclear activities at the NCRI-named sites; inspectors visited the sites the following February. Adopting its first resolution on the matter in September 2003, the IAEA board called on Tehran to increase its cooperation with the agency’s investigation, suspend Iran’s uranium enrichment activities, and “unconditionally sign, ratify and fully implement” an additional protocol.⁷⁸ In October 2003, Iran concluded a voluntary agreement with the E3 to suspend its enrichment activities, sign and implement an additional protocol to Iran’s IAEA safeguards agreement, and comply fully with the IAEA’s investigation.⁷⁹ As a result, the agency’s board decided to refrain from reporting the matter to the UN Security Council. As noted, Tehran signed this additional protocol in December 2003 but has never ratified it.⁸⁰

Ultimately, the IAEA’s investigation, as well as information Iran provided after the October 2003 agreement, revealed that Iran had engaged in a variety of clandestine nuclear-related activities, some of which violated the country’s safeguards agreement (see **Appendix C**). After October 2003, Iran continued some of its enrichment-related activities, but Tehran and the E3 agreed in November 2004 to a more detailed suspension agreement.⁸¹ However, Iran resumed uranium conversion in August 2005 under the leadership of the then President Mahmoud Ahmadinejad, who had been elected two months earlier.

⁷⁴ Paul Kerr and Miles Pomper, “Tackling the Nuclear Dilemma: An Interview with IAEA Director-General Mohamed ElBaradei,” Arms Control Association, February 4, 2005.

⁷⁵ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran: Report by the Director General*, GOV/2006/15, February 27, 2006.

⁷⁶ Rockwood, “IAEA Safeguards.”

⁷⁷ Gary Samore, former senior director for nonproliferation and export controls, National Security Council, personal communication, June 5, 2008; and George J. Tenet, “DCI Remarks on Iraq’s WMD Programs,” February 5, 2004.

⁷⁸ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran: Report by the Director General*, GOV/2003/75, November 10, 2003.

⁷⁹ UK Parliament, “Joint Statement at the End of a Visit to the Islamic Republic of Iran by the Foreign Ministers of Britain, France and Germany,” October 21, 2003.

⁸⁰ Iran implemented the protocol pursuant to the JCPOA until February 2021.

⁸¹ See *Agreement Between the Government of Iran and the Governments of France, Germany and the United Kingdom on Iran’s Nuclear Program*, November 15, 2004.

September 2005 Noncompliance Finding

On September 24, 2005, the IAEA Board of Governors adopted a resolution that, for the first time, found Iran to be in noncompliance with its IAEA safeguards agreement.⁸² The board, however, did not report the matter to the Security Council, choosing instead to give Tehran additional time to comply with the board's demands. The resolution urged Iran

- to implement transparency measures including access to individuals, documentation relating to procurement, dual use equipment, certain military owned workshops, and R&D locations;
- to reestablish full and sustained suspension of all enrichment-related activity;
- to reconsider the construction of the research reactor moderated by heavy water;
- to ratify promptly and implement in full the additional protocol; and
- to continue to act in accordance with the provisions of the additional protocol.

No international legal obligations required Tehran to take these steps. But ElBaradei's September 2008 report asserted that, without Iranian implementation of such "transparency measures," the IAEA would "not be in a position to progress in its verification of the absence of undeclared nuclear material and activities in Iran."⁸³

Iran announced in January 2006 that Tehran would resume R&D on its centrifuges at Natanz. The next month, the IAEA Board of Governors reported Iran's case to the UN Security Council.⁸⁴ Tehran announced shortly after that it would stop implementing its additional protocol. (For details, see "Iran and the UN Security Council" below.)

Post-September 2005 Noncompliance and Potential Noncompliance

Design Information Provision

Iran informed the IAEA in March 2007 that Tehran would stop complying with a portion of the subsidiary arrangements for Tehran's IAEA safeguards agreement.⁸⁵ That provision (called the modified Code 3.1), to which Iran agreed in February 2003, requires states to provide design information for new nuclear facilities "as soon as the decision to construct, or to authorize construction, of such a facility has been taken, whichever is earlier."⁸⁶

Beginning in March 2007, Iran argued that it was only obligated to adhere to the previous notification provisions of its subsidiary arrangements, which required Tehran to provide design information for a new facility 180 days before introducing nuclear material into it.⁸⁷ Iran later

⁸² IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Resolution Adopted on 24 September 2005*, GOV/2005/77, September 24, 2005.

⁸³ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2008/38.

⁸⁴ For details on the IAEA's authority to refer noncompliance cases to the Security Council, see "Iran and the UN Security Council."

⁸⁵ According to the IAEA Safeguards Glossary, subsidiary arrangements are "[t]he document specifying in detail how the procedures laid down in a safeguards agreement are to be applied."

⁸⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2023/58, November 15, 2023.

⁸⁷ During a November 2011 session of the Non-Aligned Movement, Ambassador Ali Asghar Soltanieh, the then Iran's Permanent Representative to the IAEA, characterized modified Code 3.1 as "merely a suggestion" by the IAEA Board of Governors. See *Tehran Times*, "Iran Provides 20 Answers to Clarify Ambiguities about Its Nuclear Program," (continued...)

cited this decision when withholding some information from the IAEA concerning Tehran's nuclear program. For example, Iran refused to provide updated design information for the heavy-water reactor under construction at Arak.⁸⁸ However, as part of a November 24, 2013, Joint Plan of Action between Iran and the P5+1, Iran submitted this information to the IAEA on February 12, 2014.⁸⁹ Similarly, Tehran had refused to provide the IAEA with design information for a reactor that Iran intends to construct at Darkhovin. Although Iran provided the agency with preliminary design information about the Darkhovin reactor in a September 22, 2009, letter, the IAEA requested Tehran to "provide additional clarifications" of the information, according to a November 2009 report.⁹⁰ Amano reported in September 2010 that Iran had "provided only limited design information with respect to" the reactor.⁹¹ IAEA reports since 2012 do not appear to address this issue.

Tehran also argued, based on its March 2007 decision, that the government's failure to notify the IAEA before September 2009 that Iran had been constructing a gas-centrifuge uranium enrichment facility, called the Fordow facility, was consistent with the government's safeguards obligations. Exactly when Iran decided to construct the facility is unclear. Amano reported in May 2012 that the IAEA has requested information from Iran regarding the Fordow construction decision. But Tehran, according to a November 2015 report from Amano, had not provided all of this information.⁹²

Both the 2007 decision, which the IAEA asked Iran to "reconsider," and Tehran's refusal to provide the design information appear to be inconsistent with the government's safeguards obligations. Although Article 39 of Iran's safeguards agreement states that the subsidiary arrangements "may be extended or changed by agreement between" Iran and the IAEA, the agreement does not allow a state to modify or suspend unilaterally any portion of those

November 9, 2011. "Until 1992, the standard language" for Code 3.1 "called for the state to provide the IAEA with completed design information questionnaires for new nuclear facilities as soon as possible but no later than 180 days before the introduction of nuclear material." The IAEA subsequently adopted the current notification requirement (Michael D. Rosenthal et al., *Review of the Negotiation of the Model Protocol Additional to the Agreement(s) Between State(s) and the International Atomic Energy Agency for the Application of Safeguards INFCIRC/540 (Corrected) Volume I/III Setting the Stage: 1991-1996*, Nonproliferation and National Security Department, Nonproliferation and Safeguards Division, Brookhaven National Laboratory, January 2010).

⁸⁸ This lack of information was "having an increasingly adverse impact on the Agency's ability to effectively verify the design of the facility and to implement an effective safeguards approach," according to Amano's May 2013 report (GOV/2013/27). A November 2013 report from Amano explains that the IAEA "needs updated design information as early as possible in order ... to ensure that all possible diversion paths are identified, and appropriate safeguards measures and customized safeguards equipment are put in place." (IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2013/56, November 14, 2013.) Iran has concluded "a safeguards approach for the reactor" (IAEA, *Status of Iran's Nuclear Programme in Relation to the Joint Plan of Action: Report by the Director General*, GOV/INF/2015/8, April 20, 2015).

⁸⁹ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2014/10, February 20, 2014. For more information, see CRS Report R43333, *Iran Nuclear Agreement and U.S. Exit*, by Paul K. Kerr and Clayton Thomas.

⁹⁰ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008) in the Islamic Republic of Iran: Report by the Director General*, GOV/2008/59, November 19, 2008.

⁹¹ IAEA, *Implementation of the NPT Safeguards Agreement in Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2010/46, September 6, 2010.

⁹² IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2015/65, November 18, 2015.

arrangements.⁹³ The IAEA legal adviser explained in a March 2009 statement that Tehran's failure to provide design information for the reactors is "inconsistent with" Iran's obligations under its subsidiary arrangements.⁹⁴ The adviser, however, added that "it is difficult to conclude that" Tehran's refusal to provide the information "in itself constitutes noncompliance with, or a breach of" Iran's safeguards agreement. Nevertheless, a November 2009 report from ElBaradei described Tehran's failures both to notify the agency of the decision to begin constructing the Fordow facility, as well as to provide the relevant design information in a timely fashion, as "inconsistent with" Iran's safeguards obligations. The report similarly described Iran's delay in providing design information for the Darkhovin reactor.

Iran may also have violated its safeguards agreement if the government has decided to construct other new nuclear facilities without informing the IAEA. The agency has investigated whether Iran has made such decisions. For example, the IAEA asked the government for information about Iranian statements indicating that Tehran is planning to construct new nuclear facilities.⁹⁵ Pursuant to its aforementioned November 2013 agreement with the IAEA, Iran has provided at least some of this information to the agency.⁹⁶

Iran's March 2007 decision regarding the provision of information to the IAEA also formed the basis for Tehran's refusal until August 2009 to allow agency inspectors to verify design information for the Arak reactor. Tehran's action appeared to be inconsistent with the government's safeguards agreement, Article 48 of which states that the IAEA "may send inspectors to facilities to verify the design information provided to the Agency." The IAEA has a "continuing right" to conduct such verification, according to a November 2008 report from ElBaradei.⁹⁷ The March 2009 IAEA legal adviser's statement characterized Iran's refusal to allow IAEA inspectors to verify the Arak reactor's design information as "inconsistent with" Tehran's obligations under its safeguards agreement.⁹⁸ IAEA inspectors visited the reactor facility in August 2009 to verify design information, according to a report ElBaradei issued the same month.⁹⁹

In addition to the lapses described above, Iran's failure to notify the IAEA of its decision to produce enriched uranium containing a maximum of 20% uranium-235 in time for agency inspectors to adjust their safeguards procedures may, according to a February 2010 report from the then Director General Amano, have violated Iran's IAEA safeguards agreement.¹⁰⁰ Article 45 of that agreement requires that Tehran notify the IAEA "with design information in respect of a

⁹³ See also IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2007/22, May 23, 2007. Security Council Resolution 1929 (2010) affirmed that Code 3.1 "cannot be modified nor suspended unilaterally."

⁹⁴ IAEA, "Statement by the Legal Adviser," meeting of the Board of Governors, March 2009.

⁹⁵ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2023/43.

⁹⁶ See, for example, IAEA, *Status of Iran's Nuclear Programme in relation to the Joint Plan of Action: Report by the Director General*, GOV/INF/2014/29, December 19, 2024.

⁹⁷ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008)*, GOV/2008/59. Security Council Resolution 1929 (2010) affirmed this statement.

⁹⁸ Iran stated in an April 2007 letter to the IAEA that, given Tehran's March 2007 decision regarding the subsidiary arrangements to its safeguards agreement, such visits were unjustified.

⁹⁹ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008) in the Islamic Republic of Iran: Report by the Director General*, GOV/2009/55, August 28, 2009.

¹⁰⁰ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008) in the Islamic Republic of Iran: Report by the Director General*, GOV/2010/10, February 18, 2010.

modification relevant for safeguards purposes sufficiently in advance for the safeguards procedures to be adjusted when necessary,” according to Amano’s report, which describes Iran’s enrichment decision as “clearly relevant for safeguards purposes.”¹⁰¹

The IAEA board has neither found that any of the Iranian actions described above are in noncompliance with Tehran’s safeguards agreement, nor reported these issues to the UN Security Council. The IAEA board adopted a resolution on November 27, 2009, describing Iran’s failure to notify the agency of the Fordow facility as “inconsistent with” the subsidiary arrangements under Iran’s safeguards agreement, but this statement did not constitute a formal finding of noncompliance. A September 13, 2012, IAEA board resolution expressed “serious concern” that Tehran had not complied with the obligations described in IAEA Board of Governors and UN Security Council resolutions, but that resolution also does not contain a formal finding of noncompliance.¹⁰²

Iran, pursuant to the JCPOA, began in January 2016 to implement modified Code 3.1 to the government’s safeguards agreement.¹⁰³ However, Iran notified the IAEA on February 15, 2021, that the government would cease implementing modified Code 3.1.¹⁰⁴ According to a September 2022 report from Director General Grossi, Iran had informed the IAEA that Tehran did not “have a plan to construct a new nuclear facility in the near future” and that the government “was ready to work with” the agency “to find a mutually acceptable solution to address the issue of modified Code 3.1.”¹⁰⁵ However, Iran did not provide the agency with IAEA-requested “preliminary design information” for potential new nuclear facilities to which Iranian public statements have alluded.¹⁰⁶ Grossi told the IAEA Board of Governors on June 9, 2025, that “Iran’s unilateral decision to stop implementation of modified Code 3.1 has led to a significant reduction in the [IAEA’s] ability to verify whether Iran’s nuclear programme is entirely peaceful.”¹⁰⁷ In response to subsequent IAEA requests for information covered by modified Code 3.1, Tehran has informed the agency that the government will provide such information “in due time.”¹⁰⁸

Iran informed the IAEA in a June 12, 2025, letter that the government “intends to establish a new enrichment facility named as Isfahan Fuel Enrichment Plant (IFEP).”¹⁰⁹ The related design

¹⁰¹ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions 1737 (2006), 1747 (2007), 1803 (2008) and 1835 (2008)*, GOV/2010/10.

¹⁰² IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2012/50.

¹⁰³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2016/8, February 28, 2016.

¹⁰⁴ Reports from Grossi have repeatedly noted that Iranian is legally obligated to implement modified Code 3.1. For example, a September 4, 2023, report states that “implementation of modified Code 3.1 is a legal obligation for Iran under the Subsidiary Arrangements to its Safeguards Agreement which, in accordance with Article 39 of Iran’s Safeguards Agreement, cannot be modified unilaterally and that there is no mechanism in the Safeguards Agreement for the suspension of implementation of provisions agreed to in the Subsidiary Arrangement.” See IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2023/43.

Iran explained in a September 14, 2023, letter to the IAEA that Tehran suspended implementation of modified Code 3.1 pursuant to JCPOA paragraphs 26 and 36 (INFCIRC/1131). See “The Joint Comprehensive Plan of Action.”

¹⁰⁵ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2022/39.

¹⁰⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2023/43.

¹⁰⁷ IAEA, “IAEA Director General’s Introductory Statement to the Board of Governors,” June 9, 2025.

¹⁰⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2024/8, February 26, 2024; IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1275, March 4, 2025; and IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2023/58.

¹⁰⁹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2025/50, September 3, 2025.

information “was available for examination by the Agency at the facility,” the letter added.¹¹⁰ The IAEA planned to conduct verification activities at the facility on June 13, 2025, but cancelled the visit “due to the commencement of the military attacks” that day.¹¹¹ The IAEA has not been able to access the facility, which, according to Iran, was “‘subjected’ to military attacks.”¹¹² Director General Grossi reported in June 2026 that the agency “does not know the precise location of IFEP ... whether it contains nuclear material or whether enrichment activities have been conducted therein.”¹¹³ IAEA Board of Governors resolutions adopted in November 2025 and June 2026 do not mention this facility by name, but they do reiterate Iran’s obligation to apply modified Code 3.1 (see “IAEA Safeguards Implementation Post-June 2025”).

Undeclared Nuclear Material

A March 3, 2020, report from IAEA Director General Grossi to the agency’s Board of Governors states that the IAEA has “identified a number of questions related to possible undeclared nuclear material and nuclear-related activities” that had taken place at three undeclared Iranian locations.¹¹⁴ Beginning in November 2019, IAEA reports detail what Grossi has described as “possible undeclared nuclear material and nuclear-related activities” in Iran. Specifically, IAEA inspectors have detected anthropogenic uranium particles at three undeclared Iranian locations.¹¹⁵ Pursuant to Iran’s comprehensive safeguards agreement and additional protocol, the agency has requested information about these activities, as well as access to these locations.¹¹⁶

In a March 4, 2020, press interview, Director General Grossi explained that the traces of uranium indicate “the possibility of nuclear activities and material that are not under international supervision and about which we know not the origin or the intent.”¹¹⁷ Tehran’s inadequate cooperation with the IAEA was “adversely affecting the Agency’s ability to clarify and resolve the questions” raised by the IAEA’s findings described above, according to a June 2020 report from Grossi.¹¹⁸ The IAEA Board of Governors adopted a resolution later that month calling on

¹¹⁰ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/50.

¹¹¹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/50.

¹¹² IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of the United Nations Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2026/33, June 4, 2026.

¹¹³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran* (GOV/2025/71), GOV/INF/2026/9.

¹¹⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2020/15, March 3, 2020. Iran has suggested that these agency investigations are based on “fabricated information” from foreign intelligence services (IAEA, *Communication Dated 8 June 2020 Received from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/936, June 9, 2020; IAEA, *Communication Dated 3 June 2022 Received from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/996, June 7, 2022; and IAEA, *Communication Dated from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1131).

¹¹⁵ According to a February 2021 report from Director General Grossi, the IAEA has “assessed that there would be no verification value in conducting a complementary access” at a fourth location where Iran may have conducted undeclared nuclear activities. The agency instead decided to conduct “additional verification activities” at a different Iranian facility. (IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2021/15, February 23, 2021).

¹¹⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2021/42, September 7, 2021.

¹¹⁷ Didier Lauras and Jastinder Khera, “IAEA Chief Demands ‘Clarifications’ on Iran’s Nuclear Program,” AFP, March 4, 2020.

¹¹⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2020/30, June 5, 2020. The IAEA “is not in a position to determine whether the related nuclear material is still outside of safeguards” (IAEA, “IAEA Director General’s Introductory Statement to the Board of Governors,” June 9, 2025).

Iran “to fully cooperate with the Agency and satisfy the Agency’s requests without any further delay, including by providing prompt access to the locations specified by the Agency.”¹¹⁹ This resolution does not contain a formal finding of noncompliance.

Although Iran has provided the IAEA with access to the relevant locations and provided some related information, these actions have not resolved the outstanding issues. A December 2021 bilateral agreement stated that Iran and the IAEA would “continue to work on remaining outstanding safeguards issues with the aim of resolving them.”¹²⁰ Subsequently, the two sides in February 2022 conducted “technical discussions,” which “paved the way” for a March 5, 2022, joint statement detailing a mutual agreement to “accelerate and strengthen” mutual “cooperation and dialogue aimed at the resolution of the [outstanding] issues.”¹²¹ The statement specified “a series of actions ... upon completion of which” Grossi intended to “report his conclusion” in time for the IAEA Board of Governors June 2022 meeting.¹²² According to a May 2022 report from Grossi, the relevant safeguards issues remained outstanding.¹²³

On June 8, 2022, the IAEA Board of Governors adopted a resolution calling on Iran “to act on an urgent basis to fulfil its legal obligations and, without delay, take up” Grossi’s “offer of further engagement to clarify and resolve all outstanding safeguards issues.”¹²⁴ This resolution does not contain a formal finding of noncompliance. Iran “has fulfilled all its commitments in this respect and addressed all the Agency’s questions in a very substantive and cooperative manner,” according to a June 9, 2022, statement from Tehran’s mission to the UN in Vienna.¹²⁵ Nevertheless, according to a September 7, 2022, report from Grossi, Iran had not engaged with the Agency on the outstanding safeguards issues since the May 2022 report.¹²⁶

The IAEA Board of Governors stated in a November 17, 2022, resolution that “it is essential and urgent” for Iran to take certain actions to resolve the outstanding safeguards matters.¹²⁷ This resolution also does not contain a formal finding of noncompliance. A March 4, 2023, report from Grossi notes that “by the end of February 2023 no progress had been made toward resolving any

¹¹⁹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Resolution Adopted by the Board of Governors on 19 June 2020*, GOV/2020/34, June 19, 2020.

¹²⁰ IAEA, “IAEA and Iran Reach Agreement on Replacing Surveillance Cameras at Karaj Facility.”

¹²¹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2022/5, March 5, 2022.

¹²² IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2022/5.

¹²³ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2022/26, May 30, 2022.

¹²⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Resolution Adopted by the Board of Governors on 8 June 2022*, GOV/2022/34, June 8, 2022.

¹²⁵ Mr. Mohammad Reza Ghaebi, Acting Head of Mission and Charge d’Affaires, Iran Permanent Mission to the United Nations Office and Other International Organizations, *Statement before the IAEA Board of Governors on NPT Safeguards Agreement with the Islamic Republic of Iran (GOV/2022/26)*, June 9, 2022.

¹²⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2022/42, September 7, 2022.

¹²⁷ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Resolution Adopted on 17 November During the 1654th Session*, GOV/2022/70, November 17, 2022. The resolution requires that Iran “Provide technically credible explanations for the presence of uranium particles of anthropogenic origin at three undeclared locations in Iran; Inform the Agency of the current location(s) of the nuclear material and/or of the contaminated equipment; Provide all information, documentation, and answers the Agency requires for that purpose; and Provide access to locations and material the Agency requires for that purpose, as well as for the taking of samples as deemed appropriate by the Agency.”

of the outstanding safeguard's issues.”¹²⁸ According to an IAEA-AEOI joint statement issued the same day, “Iran expressed its readiness to continue its cooperation and provide further information and access to address the outstanding safeguards issues” concerning the above-described locations.¹²⁹

Iran subsequently “provided a possible explanation for the presence” of nuclear material at one of the three undeclared locations, Grossi reported on May 31, 2023, adding that “the matter is no longer outstanding.”¹³⁰ However the safeguards issues concerning the other two sites remain outstanding.¹³¹ A September 14, 2023, Iranian letter to the IAEA asserts that the government “has exhausted all its efforts so as to discover the origin” of the uranium particles.¹³² The lack of an explanation for the particles’ origin “would reasonably imply that possibly external elements, such as sabotage and malicious acts, have been involved in the contamination,” the letter adds.¹³³ A March 2024 letter from Iran to the IAEA asserts that the agency’s IAEA assessments are “based on unreliable information and unauthentic documents provided by” Israel.¹³⁴

On June 5, 2024, the IAEA Board of Governors adopted a resolution calling on Iran to take a number of actions, including complying with the November 2022 board resolution and implementing the March 2023 joint statement.¹³⁵ The board warned that Iran’s failure to cooperate with the agency’s investigation of the outstanding safeguards issues could “necessitate the production” by Grossi of a “comprehensive and updated assessment on the possible presence or use of undeclared nuclear material” in Iran.

A subsequent board resolution adopted on November 21, 2024, called on Iran to comply with the June 2024 resolution and requested Grossi

to produce a comprehensive and updated assessment on the possible presence or use of undeclared nuclear material in connection with past and present outstanding issues regarding Iran’s nuclear programme, including a full account of Iran’s cooperation with the IAEA on these issues, addressing the Agency’s ability to verify Iran’s implementation of its safeguards obligations including the non-diversion of nuclear material, based on all information available, for consideration by the March 2025 Board of Governors or at the latest by spring 2025.¹³⁶

A November 22, 2024, Iranian Foreign Ministry and AEOI joint statement announced that, in response to the resolution, the AEOI had “issued directives to initiate the operation of a

¹²⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2023/9, March 4, 2023.

¹²⁹ IAEA, “Joint Statement by the AEOI and the IAEA,” March 4, 2023.

¹³⁰ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2023/26, May 31, 2023.

¹³¹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2025/10, February 26, 2025.

¹³² IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1131.

¹³³ IAEA, *Communication Dated from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1131.

¹³⁴ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1183, March 7, 2024. Letters from Iran to the IAEA sent in June 2024 (INFCIRC/1215), November 2024 (INFCIRC/1260), March 2025 (INFCIRC/1275), June 2025 (INFCIRC/1297), and September 2025 (INFCIRC/1315) contain similar language.

¹³⁵ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Resolution Adopted on 5 June 2024 During the 1723rd Session*, GOV/2024/39, June 5, 2024.

¹³⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2024/68, November 21, 2024.

substantial number of advanced centrifuges of various models.”¹³⁷ A November 27, 2024, news report stated that, according to Eslami, Iran had begun to feed gaseous uranium hexafluoride into “several thousand advanced centrifuges.”¹³⁸

Grossi produced the IAEA board-ordered report on May 31, 2025.¹³⁹ In a June 2025 statement to the board, Grossi noted that “Iran has repeatedly either not answered, or not provided technically credible answers to” the agency’s questions related to the investigation. Iran “also sought to sanitize the locations” under investigation, an action that “has impeded [IAEA] verification activities.”¹⁴⁰ Subsequent reports from Grossi note that Iran has not engaged with the agency on the unresolved issues.¹⁴¹ Despite past statements from Iranian officials expressing Tehran’s willingness to cooperate with the IAEA investigation, Iran argued in a June 7, 2026, letter to the IAEA that Tehran has “rendered its full cooperation to the Agency on the matters related to the outstanding [safeguards] issues,” adding that “there is no reason for the Agency to continue further scrutinizing the alleged issues.”¹⁴²

Undeclared Uranium Conversion

IAEA verification activities indicate that Iran may have produced additional undeclared nuclear material. Specifically, IAEA inspectors in March 2022 verified a quantity of nuclear material dissolved by Iran in the country’s uranium conversion facility; Iran had transferred natural uranium “in the form of solid waste and items of uranium metal” from a facility called the Jaber Ibn Hayan Multipurpose Laboratory (JHL).¹⁴³ In the course of their verification activity, that agency inspectors “identified a discrepancy” between the amounts of IAEA-verified and Iran-declared nuclear material.¹⁴⁴ Following subsequent discussions between IAEA and Iranian officials, Iran in February 2024 provided the agency with corrected nuclear material accounting information.¹⁴⁵ “On the basis of” this information, the IAEA “considered the discrepancy in the

¹³⁷ Iran Watch, “Joint Statement of the Ministry of Foreign Affairs and the Atomic Energy Organization of Iran Regarding the Unjust Resolution,” November 22, 2024.

¹³⁸ *Fars News Agency*, “AEOI Head: Iran Begins Gas Injection into Advanced Centrifuges,” November 27, 2024.

¹³⁹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25.

¹⁴⁰ IAEA, “IAEA Director General’s Introductory Statement to the Board of Governors,” June 9, 2025.

¹⁴¹ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33; IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of the United Nations Security Council Resolutions in the Islamic Republic of Iran: Report by the Director General*, GOV/2026/8, February 27, 2026; IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2025/65, November 12, 2025; and IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran: Report by the Director General*, GOV/2025/53, September 3, 2025.

¹⁴² IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380, June 8, 2026. AEOI head Eslami stated on December 14, 2024, that Iran “will engage with the agency on the remaining two sites” that the IAEA has been investigating (*Islamic Republic News Agency*, “No Barriers to IAEA Inspections in Iran: Nuclear Chief,” December 14, 2024). Iranian Deputy Foreign Minister Kazem Gharibabadi wrote on March 17, 2025, that ongoing cooperation between Iran and the IAEA “enables them to resolve the few remaining differences,” adding that Tehran “remains committed to cooperating with the IAEA within the framework of its safeguards’ obligations” (“Iran Calls for ‘External Political Pressures’ on IAEA to Be Removed,” *X (formerly Twitter) in Persian*, March 17, 2025).

¹⁴³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2023/8, February 28, 2023. Iran produced this material between 1995 and 2000 (GOV/2025/25).

¹⁴⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25.

¹⁴⁵ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2024/8.

nuclear material balance” at the conversion facility “to have been rectified.”¹⁴⁶ However, “Iran withdrew the corrected” nuclear material accounting information in October 2024, according to Grossi’s May 31, 2025, report.¹⁴⁷ As a consequence, “the discrepancy in the nuclear material balance at” the conversion facility “can no longer be considered to have been rectified.”¹⁴⁸

The corrected information previously submitted by Iran, however, indicates that a 2003-2004 Iranian declaration to the IAEA underreported the amount of uranium present at JHL.¹⁴⁹ In a March 7, 2024, statement to the IAEA Board of Governors, Ambassador Laura Holgate explained that “the ultimate question remains whether there is some quantity of uranium metal that remains unaccounted for in Iran and, more importantly, to what purpose was that metal put?”¹⁵⁰ Grossi’s May 31, 2025, report indicates that the discrepancy remains unresolved.¹⁵¹ Subsequent reports from Grossi note that Iran has not engaged with the agency on the unresolved issues.

Fordow Cascades

In a separate incident, Iran acted in a manner “contrary” to its IAEA safeguards agreement, Grossi reported on March 4, 2023.¹⁵² Specifically, Iran began to operate two centrifuge cascades in the Fordow facility in a manner inconsistent with the design information that Iran had provided to the IAEA.¹⁵³ Subsequently, Tehran agreed to increased “frequency and intensity” of IAEA verification activities at the facility; Iran also provided the IAEA with updated information to reflect the aforementioned cascade operation.¹⁵⁴

June 2025 Noncompliance Finding

On June 12, 2025, the IAEA Board of Governors adopted a resolution finding that Iran’s failure to cooperate fully with the IAEA investigation, described above, “constitutes non-compliance with” Tehran’s obligations under the government’s IAEA safeguards agreement “in the context of Article XII.C of the Agency’s Statute” (see “Authority for IAEA and UN Security Council Actions”).¹⁵⁵

Rather than immediately report Iran’s noncompliance to the UN Security Council, the resolution requests Grossi “to continue his efforts to implement this and previous resolutions and to report again” concerning Iran’s compliance with those resolutions.¹⁵⁶ A June 11, 2025, statement from

¹⁴⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25. Iran’s March 2024 letter to the IAEA asserts that the “discrepancy resulted from recovery activities due to nature of conversion processes” (INFCIRC/1183).

¹⁴⁷ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25.

¹⁴⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25.

¹⁴⁹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2024/8.

¹⁵⁰ U.S. Mission to International Organizations in Vienna, “Agenda Item 6c – IAEA Board of Governors Meeting – March 2024,” March 7, 2024.

¹⁵¹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/25.

¹⁵² IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2023/9.

¹⁵³ According to a February 2025 report from IAEA Director General Grossi, centrifuge cascades “are considered to be operating if they have been fed with” uranium hexafluoride “for enrichment of collected product.” IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2025/8, February 26, 2025.

¹⁵⁴ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2023/24, May 31, 2023.

¹⁵⁵ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/38, June 12, 2025.

¹⁵⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/38.

the E3 and United States explains that the resolution “defers the timing and content” of this report and adds that

[w]e hope that Iran takes this final opportunity to provide full and immediate cooperation with the IAEA so that the Director General can report that these matters have been clarified and resolved, and so that the Board can swiftly consider action to find that Iran’s non-compliance has been remedied.¹⁵⁷

Specifically, the June 2025 resolution requires Iran to

- provide technically credible explanations for the presence of uranium particles of anthropogenic origin in two undeclared locations in Iran;
- inform the agency of the current location(s) of the nuclear material and/or of the contaminated equipment;
- provide all information, documentation and answers the agency requires for that purpose; and
- provide access to locations and material the agency requires for that purpose, as well as for the taking of samples as deemed appropriate by the agency.¹⁵⁸

The resolution also requires Iran to “comply fully and without delay with its legal obligations” under the reimposed Security Council resolutions, as well as “to extend full and prompt cooperation to the IAEA.” In addition, the resolution requires Iran to comply with Tehran’s safeguards agreement, apply modified Code 3.1, implement the government’s additional protocol, and provide the IAEA with precise information on Iranian nuclear material and safeguarded nuclear facilities, as well as “all access it requires to verify this information.” In response to the above-described resolution, the AEOI and Iran’s Foreign Ministry announced on June 12, 2025, that the AEOI President had “issued necessary directives for launching a new enrichment facility in a secure location” and for “replacing first-generation centrifuges” at the Fordow enrichment facility with “advanced sixth-generation machines.”¹⁵⁹

IAEA Safeguards Implementation Post-June 2025

On June 13, 2025, Israel initiated military attacks on Iran; the United States followed suit on June 21.¹⁶⁰ By the end of June 2025, the IAEA “had decided to withdraw all of its inspectors from Iran for safety reasons.”¹⁶¹ Following these attacks, which, according to the IAEA, “affected” seven Iranian facilities containing nuclear material, Tehran adopted on July 2 a law suspending the government’s cooperation with the agency.¹⁶² Director General Grossi reported on September 3, 2025, that the IAEA had “lost continuity of knowledge” of the Iranian nuclear material inventories, “which urgently needs to be addressed.”¹⁶³

¹⁵⁷ U.S. Mission to International Organizations in Vienna, “Quad Statement – As Delivered by the United States on behalf of France, Germany, and the United Kingdom – Agenda Item 6f – NPT Safeguards Agreement with the Islamic Republic of Iran,” June 11, 2025.

¹⁵⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/38.

¹⁵⁹ Islamic Republic of Iran, Ministry of Foreign Affairs, “Joint statement by the Ministry of Foreign Affairs and the Atomic Energy Organization of the Islamic Republic of Iran,” June 12, 2025.

¹⁶⁰ CRS Insight IN12571, *U.S. Strikes on Nuclear Sites in Iran*, by Clayton Thomas.

¹⁶¹ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

¹⁶² IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33. *Fars News Agency*, “Iranian Parliament Approves Plan to Suspend Cooperation with IAEA,” June 25, 2025.

¹⁶³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/50.

According to the IAEA, Iran's safeguards agreement requires Tehran "to provide a special report without delay on the status for safeguards purposes of the nuclear material and facilities affected by the [June 2025] military attacks."¹⁶⁴ Iran has contested this claim, asserting that the safeguards agreement "lacks specific provisions regarding the implementation of safeguards measures under war condition."¹⁶⁵ Iran's Supreme National Security Council (SNSC) stated on September 15, 2025, that Tehran would report to the IAEA concerning the attacked facilities "only after obtaining" the SNSC's approval.¹⁶⁶

Director General Grossi announced on September 10, 2025, that he and Iranian Foreign Minister Araghchi had signed an agreement on "Practical Modalities for the Implementation of Safeguards in Iran" (also known as the Cairo Agreement), which provided for "a clear understanding of the procedures for inspection, notifications, and implementation, fully in line with the relevant provisions" of Iran's comprehensive safeguards agreement.¹⁶⁷ According to Araghchi, the agreement established a "framework" for continued Iranian cooperation with the IAEA.¹⁶⁸

The Cairo Agreement included "all [nuclear] facilities and installations in Iran" and contemplated "the required reporting on all the attacked facilities, including the nuclear material present at those" facilities, Director General Grossi stated.¹⁶⁹ Regarding agency inspections of the attacked facilities, Grossi explained that "we need to perform a number of inspections, we have to go to places that ... were destroyed partially or totally, where the conditions for physical access could be challenging."¹⁷⁰ Iran has argued that the Cairo Agreement was necessary because comprehensive safeguards agreements lack provisions "for the implementation of safeguards during war time."¹⁷¹ Grossi has stated that the agency does not need a "new protocol" for inspecting attacked Iranian facilities.¹⁷²

The IAEA Board of Governors adopted a resolution on November 20, 2025, requiring Iran to "comply fully and without delay with its legal obligations" under the reimposed Security Council resolutions, as well as "to extend full and prompt cooperation to the IAEA."¹⁷³ The resolution also requires Iran to comply with its safeguards agreement, apply modified Code 3.1, implement the government's additional protocol, and provide the IAEA with precise information about Iranian nuclear material and safeguarded nuclear facilities, as well as "all access it requires to

¹⁶⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/65. Article 68 of Iran's safeguards agreement states that the government "shall make special reports without delay."

(a) If any unusual incident or circumstances lead the Government of Iran to believe that there is or may have been loss of nuclear material that exceeds the limits specified for this purpose in the Subsidiary Arrangements; or

(b) If the containment has unexpectedly changed from that specified in the Subsidiary Arrangements to the extent that unauthorized removal of nuclear material has become possible (INFCIRC/214).

¹⁶⁵ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380.

¹⁶⁶ *Iranian Students' News Agency*, "SNSC Issues Statement on Iran-IAEA Cairo Agreement," September 15, 2025.

¹⁶⁷ IAEA, "Statement by IAEA Director General on Iran," September 10, 2025.

¹⁶⁸ Permanent Mission of the Islamic Republic of Iran to the United Nations Office Vienna, "Iran IAEA Announce Agreement on Resuming Cooperation," September 10, 2025.

¹⁶⁹ IAEA, "Statement by IAEA Director General on Iran," September 10, 2025.

¹⁷⁰ IAEA video, "Press Conference with IAEA DG Rafael Grossi," YouTube video, September 8, 2025, <https://www.youtube.com/watch?v=PRJtIsus2MM>.

¹⁷¹ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380.

¹⁷² IAEA video, "Press Conference with IAEA Director General Rafael Grossi," YouTube video, November 19, 2025, https://www.youtube.com/watch?v=BOP-Jn_We-I&t=1949s.

¹⁷³ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71.

verify this information.”¹⁷⁴ This resolution, which does not contain a formal finding of noncompliance, also requests Grossi to issue quarterly reports concerning the “implementation” of Iran’s safeguards agreement, as well as the relevant provisions of the Security Council resolutions adopted between 2006 and 2010 (see “Iran and the UN Security Council”).¹⁷⁵ These quarterly reports are to include “information on the verification of Iran’s uranium stockpile, including the locations, quantities, chemical forms, and enrichment levels, and the inventories of centrifuges and related equipment.”¹⁷⁶ However, the IAEA has not been able to obtain this information from Iran.¹⁷⁷

On November 20, 2025, “Iran informed the Director General that the Cairo agreement was ‘no longer valid and shall henceforth be regarded as terminated.’”¹⁷⁸ Iran subsequently notified the IAEA that Tehran had ended the agreement “because of the confrontational attitude taken by the E3 through unlawfully resorting to the so-called snapback which led to the” November 20 IAEA Board of Governors resolution.¹⁷⁹ Iran informed the IAEA on February 2, 2026, that “conditions resulting from acts of aggression and the continuation of threats have created a situation in which the normal implementation of safeguards is legally untenable and materially impracticable.”¹⁸⁰

A February 27, 2026, report from Director General Grossi notes that the June 2025 attacks on Iran’s nuclear facilities “had created an unprecedented situation,” adding that “it is critical” for the IAEA “to conduct verification activities in Iran without any further delay.”¹⁸¹ The lack of agency access to the sites attacked in June 2025 has ended IAEA “continuity of knowledge of the previously declared nuclear material at those facilities,” Grossi explained in a later statement.¹⁸² Following military attacks on Iran launched on February 28, 2026, by the United States and Israel, the IAEA stopped conducting most verification activities in Iran.¹⁸³ Grossi reported that since the February 2026 attacks began, the agency “has lost continuity of knowledge in relation to the declared inventories of nuclear material in Iran at all of its declared nuclear facilities.”¹⁸⁴

The then Director of National Intelligence Tulsi Gabbard testified on March 18, 2026, that Iran has not resumed enriching uranium; Iranian Ambassador to the IAEA Reza Najafi repeated this claim on April 2.¹⁸⁵ The IAEA’s “inability to conduct verification activity” is “related to the war circumstances,” according to Iran’s aforementioned June 7, 2026, letter to the agency, which adds that “[s]hould the war condition be terminated, the ground will be prepared for the Agency’s safeguards verification activities.”¹⁸⁶

On June 10, 2026, the IAEA Board of Governors adopted a resolution requiring Iran to provide the agency “with complete information on nuclear material inventories and design information for

¹⁷⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71.

¹⁷⁵ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71.

¹⁷⁶ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71.

¹⁷⁷ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

¹⁷⁸ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/71.

¹⁷⁹ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380.

¹⁸⁰ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

¹⁸¹ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/8.

¹⁸² IAEA, “IAEA Director General’s Introductory Statement to the Board of Governors,” June 8, 2026.

¹⁸³ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33. From June 1 to June 3, 2026, the IAEA inspected Iran’s Bushehr Nuclear Power Plant.

¹⁸⁴ IAEA, *Verification and Monitoring in the Islamic Republic of Iran* (GOV/2025/71), GOV/INF/2026/9.

¹⁸⁵ Senate Select Committee on Intelligence, *Open Hearing: Worldwide Threats*; and AFP, “Iran Not Looking to ‘Restart’ Uranium Enrichment.”

¹⁸⁶ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380.

facilities,” as well as to provide the agency with “all access it requires to verify this information.”¹⁸⁷ The resolution also requests Grossi “to report on the implementation of this and previous resolutions.”¹⁸⁸ The resolution does not contain a new formal finding of noncompliance but adds that the board “will stand ready to take further action, including to address the timing and content” of the required report to the Security Council.¹⁸⁹

Iran and the UN Security Council

As noted, Iran announced in January 2006 that Tehran would resume R&D on its centrifuges at Natanz. In response, the IAEA board adopted a resolution on February 4, 2006, reporting the matter to the Security Council and reiterating its call for Iran to take the measures specified in the September resolution.¹⁹⁰ Two days later, Tehran announced that the government would stop implementing its additional protocol.¹⁹¹

On March 29, 2006, the UN Security Council President issued a statement, which was not legally binding, calling on Iran to “take the steps required” by the February 2006 IAEA board resolution.¹⁹² The council between 2006 and 2010 adopted six resolutions concerning Iran’s nuclear program: 1696 (2006), 1737 (2006), 1747 (2007), 1803 (2008), 1835 (2008), and 1929 (2010). The second, third, fourth, and sixth resolutions imposed a variety of restrictions on Iran.

The Security Council adopted Resolution 1696 under Article 40 of Chapter VII of the UN Charter. That article empowers the council to “call upon” governments “to comply with such provisional measures as it deems necessary or desirable” before the council decides upon or recommends responses addressing threats “to the peace, breach of the peace, or act of aggression.” Except for Resolution 1835, the council adopted the remaining resolutions, as well as Resolution 2231, under Article 41 of Chapter VII.¹⁹³ This article enables the Security Council to adopt “measures not involving the use of armed force,” including sanctions, “to give effect to its decisions” concerning “threats to the peace, breaches of the peace, and acts of aggression.”

Resolution 1696 was the first resolution to place legally binding Security Council requirements on Iran with respect to its nuclear program. Resolution 1696 made mandatory the IAEA-demanded suspension and called on Tehran to implement the transparency measures called for by the IAEA board’s February 2006 resolution. Resolution 1737 reiterated these requirements but expanded the suspension’s scope to include “work on all heavy water-related projects.” It is worth noting that the Security Council has acknowledged (in Resolution 1803, for example) Iran’s rights under Article IV of the NPT, which states that parties to the treaty have “the inalienable right ... to develop research, production and use of nuclear energy for peaceful Purposes.” As noted, Resolution 1929 also required Tehran to refrain from “any activity related to ballistic missiles capable of delivering nuclear weapons” and to comply with modified Code 3.1 of its subsidiary arrangement.

¹⁸⁷ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of United Nations Security Council Resolutions in the Islamic Republic of Iran*, GOV/2026/40, June 10, 2026.

¹⁸⁸ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/40.

¹⁸⁹ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/40.

¹⁹⁰ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2006/14, February 4, 2006.

¹⁹¹ Mark Heinrich and Francois Murphy, “IAEA Votes to Report Iran to UN Security Council,” Reuters, February 4, 2006.

¹⁹² United Nations, *Statement by the President of the Security Council*, S/PRST/2006/15, March 29, 2006.

¹⁹³ Resolution 1835 (2008) does not cite any portions of the UN Charter.

Resolution 2231, which the UN Security Council adopted on July 20, 2015, stated that all of the previous resolutions' requirements would be terminated upon council receipt of a report from the IAEA stating that Iran had implemented the nuclear-related measures by Implementation Day, as described by the July 2015 JCPOA. As noted, Implementation Day took place on January 16, 2016. Resolution 2231 stipulated that the council, which had been seized of the "Iranian nuclear issue" since 2006, would end its consideration of the matter in 2025. The resolution's "snapback" mechanism, described below, would then have ceased to be operational. Resolution 2231 also reaffirmed Iran's obligation to "cooperate fully as the IAEA requests to be able to resolve all outstanding issues, as identified in IAEA reports." The aforementioned IAEA Board of Governors' December 2015 resolution noted that the board had closed its consideration of the "outstanding issues regarding Iran's nuclear programme."

Snapback¹⁹⁴

Both the JCPOA and Resolution 2231 contain a "snapback" mechanism to reimpose sanctions and other restrictions should Iran fail to resolve satisfactorily a P5+1 claim regarding Iranian JCPOA noncompliance. According to the resolution, a JCPOA participant could, after notifying the Security Council of an issue that the government "believes constitutes significant non-performance of [JCPOA] commitments," trigger an automatic draft resolution to keep sanctions relief in effect. This mechanism provides that any permanent UN Security Council member would be able to veto such a resolution. The JCPOA specifies that, in such a case, "the provisions of the old U.N. Security Council resolutions would be re-imposed, unless the U.N. Security Council decides otherwise."

Resolution 2231 provides that only a "JCPOA participant state" may bring a noncompliance finding to the Security Council. After the United States ceased implementing its JCPOA commitments in 2018, Trump Administration officials stated that the United States was no longer participating in the agreement. Nevertheless, in an August 20, 2020, letter to the then Security Council President Indonesian Ambassador Dian Triansyah Djani, the then Secretary of State Michael Pompeo initiated the snapback process by notifying the council that Iran was "in significant non-performance" of Tehran's JCPOA commitments. However, Djani explained the next day in a letter to the council that the United States could not invoke the snapback mechanism because the United States had "withdrawn from" the JCPOA.¹⁹⁵ Consequently, he added, the August 20, 2020, letter had "no legal effect." According to a September 19, 2020, letter from UN Secretary General António Guterres, the "majority" of Security Council members argued that Pompeo's letter did not constitute the notification necessary for snapback. The resulting uncertainty, he added, required the Secretary to refrain from proceeding on the matter.

Pompeo stated on September 19, 2020, that "the snapback of previously terminated UN sanctions" had become "effective" that same day. However, on February 18, 2021, Acting U.S. Ambassador to the UN Richard Mills sent a letter to Security Council President UK Ambassador Barbara Woodward "reversing the previous administration's position on the ... sanctions snapback issue," a State Department official told reporters the same day. The United States "is affirming

¹⁹⁴ For more information, see CRS In Focus IF11583, *Iran's Nuclear Program and 2025 UN Sanctions Reimposition*, by Paul K. Kerr.

¹⁹⁵ United Nations, *Letter Dated 21 August 2020 from the Permanent Representative of Indonesia to the United Nations Addressed to the President of the Security Council*, S/2020/824.

that” Resolution 2231 “remains in full effect,” the official added.¹⁹⁶ The current Trump Administration has not changed this public position regarding the U.S. JCPOA status.

A September 13, 2023, E3 statement explained that since invoking the DRM, the governments had “strived in good faith to resolve the issues arising from Iran’s non-compliance” both via the DRM and “beyond.”¹⁹⁷ A December 6, 2024, E3 letter to the UN Security Council similarly noted that those governments had “striven in good faith to resolve the issues arising from Iran’s non-compliance through” the DRM. The letter reiterated the E3’s “determination to use all diplomatic tools to prevent Iran from acquiring a nuclear weapon, including using” the “snapback” mechanism to reimpose sanctions.¹⁹⁸ The E3 similarly wrote in a June 9, 2025, letter to the Security Council that the governments would

pursue all diplomatic options to prevent Iran from acquiring a nuclear weapon. Absent a satisfying deal, the E3 will consider triggering the “snapback” mechanism to address threats to international peace and security arising from Iran’s nuclear programme.¹⁹⁹

The E3 reiterated this stance in July 2025 and August 2025.²⁰⁰

The E3 notified the council on August 28, 2025, that “based on clear factual evidence, the E3 believe[d] Iran to be in significant non-performance of its commitments under the JCPOA,” and thereby invoked the snapback mechanism.²⁰¹ The Security Council President introduced a draft resolution on September 19 that would have maintained sanctions relief, but the council did not adopt the resolution.²⁰² China and Russia subsequently introduced a resolution on September 26, 2025, that would have effectively extended until April 18, 2026, the end of Security Council consideration of the “Iranian nuclear issue,” with “a possibility for a further extension.”²⁰³ The council did not adopt the resolution.

On September 27, 2025, the snapback process resulted in reimposition of the Resolution 2231-suspended provisions contained in the Security Council resolutions adopted between 2006 and 2010.²⁰⁴ An October 18, 2025, letter to the Security Council from China, Iran, and Russia argues that the E3 lacks standing to invoke the snapback mechanism because the three governments had

¹⁹⁶ U.S. Department of State, “Briefing with Senior State Department Officials on Diplomacy to Constrain Iran’s Nuclear Program,” February 18, 2021.

¹⁹⁷ Gov.UK, “E3 Statement at IAEA Board of Governors on the JCPOA - September 2023,” September 13, 2023.

¹⁹⁸ United Nations, *Letter Dated 6 December 2024 from the Permanent Representatives of France, Germany and the United Kingdom of Great Britain and Northern Ireland to the United Nations Addressed to the Secretary-General and the President of the Security Council*, S/2024/886, December 6, 2024.

¹⁹⁹ United Nations, *Letter dated 9 June 2025 from the representatives of France, Germany and the United Kingdom of Great Britain and Northern Ireland to the United Nations addressed to the Secretary-General and the President of the Security Council*, S/2025/358, June 9, 2025.

²⁰⁰ Reuters, “Germany: Iran Sanctions ‘Snapback’ Possible Without Solution on Nuclear Programme,” July 16, 2025; Steven Erlanger, “Europeans Threaten to Reimpose Tough U.N. Nuclear Sanctions on Iran,” *New York Times*, July 16, 2025; and Gov.UK, “Iran Nuclear: Letter from E3 Foreign Ministers, 8 August 2025,” August 13, 2025.

²⁰¹ United Nations, *Letter Dated 28 August 2025 from the Representatives of France, Germany and the United Kingdom of Great Britain and Northern Ireland to the United Nations Addressed to the Secretary-General and the President of the Security Council*, S/2025/538, August 28, 2025.

²⁰² Journal of the United Nations, Security Council 10001st meeting, September 26, 2025; Draft resolution S/2025/561, September 19, 2025.

²⁰³ China and Russian Federation: draft resolution S/2025/539, September 26, 2025; Journal of the United Nations, Security Council 10006th meeting, September 26, 2025.

²⁰⁴ Gov.UK, “Joint Statement by the Foreign Ministers of France, Germany and the UK: Activation of the Snapback,” September 19, 2025.

“ceased to perform” their JCPOA and Resolution 2231 commitments.²⁰⁵ The E3 also failed to “exhaust the procedures” of a dispute resolution mechanism contained in the JCPOA, according to the letter, which also stipulates that the council’s “consideration of the Iranian nuclear issue” have ended.²⁰⁶ The dispute concerning the resolution’s status has continued in meetings. council meetings.²⁰⁷ Iran’s above-described June 7, 2026, letter to the IAEA, asserts that Tehran “has neither any obligation regarding the previous” Security Council resolutions, “since they have been terminated through UNSC resolution 2231(2025) nor any parts of the related [IAEA Board of Governors] resolutions which are based on those terminated resolutions.”²⁰⁸

The IAEA Board of Governors adopted a resolution on November 20, 2025, requesting the IAEA director general to issue quarterly reports concerning the “implementation” of Iran’s safeguards agreement, as well as the relevant provisions of the Security Council resolutions adopted between 2006 and 2010.

Authority for IAEA and UN Security Council Actions

The legal authority for the actions taken by the IAEA Board of Governors and the UN Security Council is found in both the IAEA Statute and the UN Charter.

IAEA Statute²⁰⁹

Two sections of the IAEA Statute govern IAEA responses in the event that an IAEA member state is found to be in noncompliance with its safeguards agreement.²¹⁰ Article III B. 4. of the statute states that the IAEA is to submit annual reports to the UN General Assembly and, “when appropriate,” to the UN Security Council. If “there should arise questions that are within the competence of the Security Council,” the article adds, the IAEA “shall notify the Security Council, as the organ bearing the main responsibility for the maintenance of international peace and security.”

Additionally, Article XII C states that IAEA inspectors are to report noncompliance issues to the agency’s director general, who is to report the matter to the IAEA Board of Governors. The board is then to “call upon the recipient State or States to remedy forthwith any non-compliance which it finds to have occurred,” as well as “report the non-compliance to all members and to the Security Council and General Assembly of the United Nations.”

In the case of Iran, the September 24, 2005, IAEA board resolution stated that the board

found that Iran’s many failures and breaches of its obligations to comply with its NPT Safeguards Agreement, as detailed in GOV/2003/75 [a November 2003 report from then-

²⁰⁵ United Nations, *Letter Dated 18 October 2025 from the Representatives of China, the Islamic Republic of Iran, and the Russian Federation to the United Nations Addressed to the Secretary-General*, S/2025/660, October 20, 2025.

²⁰⁶ United Nations, *Letter from the Representatives of China, the Islamic Republic of Iran, and the Russian Federation*, S/2025/660.

²⁰⁷ See CRS In Focus IF11583, *Iran’s Nuclear Program and 2025 UN Sanctions Reimposition*, by Paul K. Kerr.

²⁰⁸ IAEA, *Communication from the Permanent Mission of the Islamic Republic of Iran to the Agency*, INFCIRC/1380.

²⁰⁹ The IAEA Statute is not self-executing; the Agency implements safeguards agreements reached with individual governments and certain regional organizations. As noted, comprehensive safeguards agreements are based on a model described in INFCIRC 153.

²¹⁰ The text of the IAEA Statute is available at <https://www.iaea.org/about/statute>.

Director General ElBaradei], constitute non compliance in the context of Article XII.C of the Agency's Statute;²¹¹

According to the resolution, the board also found

that the history of concealment of Iran's nuclear activities referred to in the Director General's report [GOV/2003/75], the nature of these activities, issues brought to light in the course of the Agency's verification of declarations made by Iran since September 2002 and the resulting absence of confidence that Iran's nuclear programme is exclusively for peaceful purposes have given rise to questions that are within the competence of the Security Council, as the organ bearing the main responsibility for the maintenance of international peace and security.

ElBaradei issued the report cited by the September 2005 resolution in November 2003.²¹² The report described a variety of Iranian nuclear activities and identified instances in which Tehran "failed to meet its obligations under its Safeguards Agreement," detailed in **Appendix C**. ElBaradei subsequently reported that Iran had taken corrective measures to address these safeguards breaches.²¹³ As noted, the 2005 resolution called on Iran to take a variety of actions that Tehran was not legally required to implement.

On June 12, 2025, the IAEA Board of Governors adopted another resolution finding that Iran's failure to cooperate fully with the IAEA's ongoing investigation "constitutes non-compliance with" Tehran's "obligations under its" IAEA safeguards agreement "in the context of Article XII.C of the Agency's Statute."²¹⁴ The board also found that Director General Grossi's

inability as indicated in GOV/2025/25 [a May 2025 report from Director General Grossi] to provide assurance that Iran's nuclear programme is exclusively peaceful gives rise to questions that are within the competence of the United Nations Security Council, as the organ bearing the main responsibility for the maintenance of international peace and security

As explained, the resolution does not require Grossi to submit a report to the Security Council by a specific date.

Relevant UN Charter Authorities and the Security Council

Several articles of the UN Charter, which is a treaty, describe the Security Council's authority to impose requirements and sanctions on Iran.²¹⁵ Article 24 confers on the council "primary responsibility for the maintenance of international peace and security." The article also states that the "specific powers granted to the Security Council for the discharge of these duties are laid down" in several chapters of the charter, including Chapter VII, which describes the actions that the council may take in response to "threats to the peace, breaches of the peace, and acts of aggression." Article 25 of the UN Charter obligates UN members "to accept and carry out the decisions of the Security Council." Article 103 of the charter states that

[i]n the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail.

²¹¹ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2005/77.

²¹² IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2003/75.

²¹³ See, for example, IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran: Report by the Director General*, GOV/2004/83, November 15, 2004.

²¹⁴ IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2025/38.

²¹⁵ The text of the charter is available at <http://www.un.org/en/sections/un-charter/un-charter-full-text/>.

Chapter VII of the charter contains three articles relevant to the Iran case. Security Council resolutions that made mandatory the IAEA's demands concerning Iran's nuclear program invoked Chapter VII. Article 39 of that chapter states that the council

shall determine the existence of any threat to the peace, breach of the peace, or act of aggression and shall make recommendations, or decide what measures shall be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security.

Resolution 1696 invoked Article 40 of Chapter VII "in order to make mandatory the suspension required by the IAEA." As noted, that resolution did not impose any sanctions on Iran. Article 40 states that

the Security Council may, before making the recommendations or deciding upon the measures provided for in Article 39 [of Chapter VII], call upon the parties concerned to comply with such provisional measures as it deems necessary or desirable.

Resolutions 1737 (2006), 1747 (2007), 1803 (2008), and 1929 (2010), which did impose sanctions, invoked Article 41 of Chapter VII. Resolution 2231 (2015), which includes the snapback mechanism described above, also invokes Article 41. According to Article 41, the Security Council

may decide what measures not involving the use of armed force are to be employed to give effect to its decisions, and it may call upon the Members of the United Nations to apply such measures. These may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations.

As noted, Security Council resolution 1835 (2008) did not impose new sanctions but reaffirmed the previous resolutions and called on Iran to comply with them.

The IAEA also has an obligation to cooperate with the Security Council, "[b]y virtue of its Relationship Agreement with the United Nations."²¹⁶ Resolution 2231 requests the IAEA director general "to undertake the necessary verification and monitoring of Iran's nuclear-related commitments for the full duration of those commitments under the JCPOA."

Has Iran Violated the NPT?²¹⁷

Whether Iran has violated the NPT is unclear. The treaty does not contain a mechanism for determining that a state-party has violated its NPT obligations. Moreover, there does not appear to be a formal procedure for determining such violations. An NPT Review Conference would, however, be one venue for NPT states-parties to make such a determination. The UN Security Council has never declared Iran to be in violation of the NPT; neither the council nor the UN General Assembly has a responsibility to adjudicate treaty violations. However, the lack of a ruling by the council on Iran's NPT compliance has evidently had little practical effect because, as noted, the council has taken action in response to the IAEA Board of Governors' determination that Iran has failed to meet its obligations under its safeguards agreement.

Iran's failure to meet its obligations under its safeguards agreement appear to constitute violations of Article III of the NPT, which requires nonnuclear-weapon states-parties to accept IAEA safeguards, in accordance with the agency's statute, "for the exclusive purpose of verification of the fulfillment of its obligations assumed under this Treaty with a view to preventing diversion of

²¹⁶ IAEA, *Implementation of the NPT Safeguards Agreement and Relevant Provisions of Security Council Resolutions in the Islamic Republic of Iran*, GOV/2013/27. The agreement is contained in INFCIRC/11.

²¹⁷ Portions of this section are based on interviews with UN and State Department officials.

nuclear energy from peaceful uses to nuclear weapons or other nuclear explosive devices.”²¹⁸

Tehran may also have violated provisions of Article II which state that nonnuclear-weapon states-parties shall not “manufacture or otherwise acquire nuclear weapons or other nuclear explosive devices” or “seek or receive any assistance in the manufacture of nuclear weapons or other nuclear explosive devices.”

IAEA and State Department reports have presented evidence of possible Iranian violations of both Article II provisions, described above. As noted, the IAEA investigated evidence of what the then IAEA Director General ElBaradei described in June 2008 as “possible military dimensions to Iran’s nuclear programme.” A December 2, 2015, report from the then Director General Amano went further, assessing that “before the end of 2003, an organizational structure was in place in Iran suitable for the coordination of a range of activities relevant to the development of a nuclear explosive device.”²¹⁹ This report echoes a November 2007 National Intelligence Estimate (NIE), according to which, “until fall 2003, Iranian military entities were working under government direction to develop nuclear weapons.”²²⁰

A 2005 State Department report regarding states’ compliance with arms control and nonproliferation agreements argued that Iran had violated Article II of the NPT:

The breadth of Iran’s nuclear development efforts, the secrecy and deceptions with which they have been conducted for nearly 20 years, its redundant and surreptitious procurement channels, Iran’s persistent failure to comply with its obligations to report to the IAEA and to apply safeguards to such activities, and the lack of a reasonable economic justification for this program leads us to conclude that Iran is pursuing an effort to manufacture nuclear weapons, and has sought and received assistance in this effort in violation of Article II of the NPT.²²¹

The report also stated that Iran’s “weapons program” combined “elements” of Tehran’s declared nuclear activities, as well as “undeclared fuel cycle and other activities that may exist, including those that may be run solely by the military.”²²²

The State Department’s 2005 reasoning appears to be based on an interpretation of the NPT that holds that a wide scope of nuclear activities could constitute violations of Article II. The 2005 report stated that assessments regarding Article II compliance “must look at the totality of the facts, including judgments as to” a state-party’s “purpose in undertaking the nuclear activities in question.” The report also included a list of activities that the department judged could constitute such noncompliance.²²³

²¹⁸ U.S. Department of State, *Adherence to and Compliance with Arms Control*, August 2005.

²¹⁹ IAEA, *Final Assessment on Past and Present Outstanding Issues Regarding Iran’s Nuclear Programme*, GOV/2015/68. Some Iranian nuclear weapons-related activities “took place after 2003,” the report adds, noting that these activities “were not part of a coordinated effort.”

²²⁰ National Intelligence Estimate (NIE), *Iran: Nuclear Intentions and Capabilities*, November 2007. Subsequent U.S. official statements have been consistent with the NIE.

²²¹ U.S. Department of State, *Adherence to and Compliance with Arms Control*, August 2005.

²²² U.S. Department of State, *Adherence to and Compliance with Arms Control*, August 2005.

²²³ According to the report, such activities can include (1) the presence of undeclared nuclear facilities; (2) procurement patterns inconsistent with a civil nuclear program (e.g., clandestine procurement networks, possibly including the use of front companies, false end-use information, and fraudulent documentation); (3) security measures beyond what would be appropriate for peaceful, civil nuclear installations; (4) a pattern of Article III safeguards violations suggestive not of mere mistake or incompetence, but of willful violation and/or systematic deception and denial efforts aimed at concealing nuclear activities from the IAEA; and (5) a nuclear program with little (or no) coherence for peaceful purposes, but great coherence for weapons purposes.

The 2005 State Department report cited testimony from the then Arms Control and Disarmament Agency Director William Foster during a 1968 Senate Foreign Relations Committee hearing during which ratification of the treaty was considered.²²⁴ Foster stated that “facts indicating that the purpose of a particular activity was the acquisition of a nuclear explosive device would tend to show non-compliance” with Article II. He gave two examples: “the construction of an experimental or prototype nuclear explosive device” and “the production of components which could only have relevance” to such a device. However, Foster also noted that a variety of other activities could also violate Article II, adding that the United States believed it impossible “to formulate a comprehensive definition or interpretation.”

The 2005 State Department report’s arguments appear to rely on the notion that a state’s apparent intentions underlying certain nuclear-related activities can be used to determine violations of Article II. This interpretation is not shared by all experts.²²⁵ The 2005 report “primarily reflected activities from January 2002 through December 2003.” A version of the report released in 2010, which primarily reflected activities from January 1, 2004, through December 31, 2008, stated that “the issues underlying” the 2005 report’s conclusion regarding Iran’s Article II compliance remained “unresolved.”²²⁶

Subsequent versions of the report reiterated the 2010 report’s assessment until 2016, when the State Department assessed that “previous issues leading to NPT noncompliance findings [regarding Iran] had been resolved.”²²⁷ As noted, the 2007 NIE assessed that Iran halted its nuclear weapons program in 2003; subsequent U.S. official statements have consistently reiterated that Tehran has not yet decided to build nuclear weapons.²²⁸

²²⁴ *Nonproliferation Treaty*, Senate Committee on Foreign Relations, Joint Committee on Atomic Energy [Part 1] July 10-12, 17, 1968; Session 90-2 (1968). The complete statement regarding Article II violations is in **Appendix E**.

²²⁵ Personal communication with Andreas Persbo, senior researcher, the Verification Research, Training and Information Centre.

²²⁶ Quotations are from U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation, and Disarmament Agreements and Commitments*, July 2010.

²²⁷ U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation, and Disarmament Agreements and Commitments*, April 2016.

²²⁸ See, for example, Director of National Intelligence James R. Clapper, *Statement for the Record, U.S. Intelligence Community Worldwide Threat Assessment*, February 26, 2015. For a more recent such assessment, see U.S. Department of State, *Adherence to and Compliance with Arms Control, Nonproliferation and Disarmament Agreements and Commitments*, April 2025; and Office of the Director of National Intelligence, *Annual Threat Assessment of the U.S. Intelligence Community*, March 25, 2025.

Appendix A. Iranian Adherence to JCPOA Nuclear Program Restrictions²²⁹

Before the June 2025 U.S. and Israeli attacks on Iran, Tehran's number of installed centrifuges, the mass and uranium-235 (u-235) concentration of Iran's enriched uranium stockpile, and number of enrichment locations exceeded JCPOA-mandated limits. Iran was also conducting JCPOA-prohibited enrichment research and development (R&D), as well as centrifuge manufacturing and installation.

The IAEA has been unable to implement safeguards on Iranian nuclear facilities, including Iran's three operating uranium enrichment facilities, since the United States and Israel attacked those facilities in June 2025. Director General Grossi reported in September 2025 that, based on IAEA "analysis of commercially available satellite imagery," the June 2025 military attacks significantly damaged the three centrifuge facilities.²³⁰ The agency subsequently stopped conducting almost all safeguards activities in the country after February 28, 2026, military attacks on Iran launched by the United States and Israel. As noted, U.S. and Iranian officials stated in March and April 2026, respectively, that Iran had not resumed enriching uranium.

Grossi reported on June 4, 2026, that the IAEA's "lack of information about, and access to, any of" Iran's enrichment facilities has rendered the agency unable to "provide any information on the current size, composition or whereabouts of the stockpile of enriched uranium in Iran or whether Iran has suspended all enrichment related activities."²³¹ The IAEA's "lack of access since February 2021 to Iran's centrifuge component manufacturing, centrifuge assembly and testing workshops" prevents the agency from providing "any information on Iran's current inventory of centrifuges or whether it has suspended their manufacture, assembly and testing," according to the same report.²³²

Operating Centrifuges²³³

Under the JCPOA, Iran is to use only its commercial-scale facility at Natanz for enriching uranium. Tehran is to use no more than 5,060 IR-1 centrifuges for this purpose. Iran has retained these centrifuges and installed additional IR-1 centrifuges. Tehran had, Grossi reported in May 2025, also installed JCPOA-prohibited IR-2m, IR-4, and IR-6 centrifuges in the facility and was enriching uranium with all three types of centrifuges.²³⁴ In addition, Iran was using IR-2m, IR-4, IR-5, and IR-6, centrifuges to produce enriched uranium at Tehran's pilot enrichment facility.²³⁵

²²⁹ Unless otherwise noted, this appendix is based on IAEA reports from May 31, 2025, or earlier, as well as the JCPOA text. The IAEA explained in a February 2024 report that "Iran stopped implementing its [JCPOA] nuclear-related commitments" beginning on May 8, 2019, until February 23, 2021, when Tehran "stopped implementing them altogether" (GOV/2024/61).

²³⁰ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/50.

²³¹ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

²³² IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

²³³ The IAEA last conducted verification at the commercial-scale facility on May 27, 2025, the pilot facility on June 11, 2025, and the Fordow facility on June 10, 2025 (GOV/INF/2026/9).

²³⁴ IAEA, *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015): Report by the Director General*, GOV/2025/24, May 31, 2025.

²³⁵ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/24.

Iran was also enriching uranium using IR-1 and IR-6 centrifuges in Iran's Fordow enrichment facility.²³⁶

Enriched Uranium Limits²³⁷

The JCPOA requires that Iran's enriched uranium stockpile must not exceed 300 kilograms of uranium hexafluoride containing 3.67% u-235 "or the equivalent in other chemical forms." This quantity of uranium hexafluoride "corresponds to 202.8 kg of uranium."²³⁸ Between July 2019 and May 2025, the IAEA found that Iran produced enriched uranium containing up to approximately 2% u-235, up to approximately 5% u-235, up to approximately 20% u-235, and up to approximately 60% u-235.²³⁹ The IAEA estimates Tehran's total stockpile of uranium hexafluoride containing more than 2% u-235 to be 6,649.4 kilograms.²⁴⁰

Centrifuge Manufacturing

Iran has manufactured centrifuges for prohibited R&D activities and manufactured centrifuge components using carbon fiber that Iran has neither declared to the JCPOA-established Joint Commission nor permitted the IAEA to monitor.²⁴¹

Research and Development

The JCPOA permits R&D with uranium using only several specified types of centrifuges and allows Iran to operate only one test cascade containing a maximum of 10 IR-4 centrifuges. Iran's current enrichment R&D activities include JCPOA-prohibited centrifuge types, locations, and configurations.²⁴²

Uranium Metal

The JCPOA prohibits Iran from "producing or acquiring plutonium or uranium metals or their alloys" and "conducting R&D on plutonium or uranium (or their alloys) metallurgy, or casting, forming, or machining plutonium or uranium metal." Producing uranium or plutonium metals is a key step in producing nuclear weapons. These prohibitions' duration is 15 years. Iran has

²³⁶ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/24.

²³⁷ Since February 16, 2021, the IAEA "has not been able to verify Iran's total enriched uranium stockpile precisely on any given day, needing to rely instead on a small proportion of the total being based on Iran's estimates" (GOV/2025/10). These IAEA estimates of Iran's enriched uranium stockpile are based on information provided to the agency by Iran up to June 12, 2025, as well as previous IAEA "verification activities and estimates based on the past operating records of the relevant declared facilities" (GOV/2026/33).

²³⁸ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/39.

²³⁹ August 2019 (GOV/2019/32) and November 2020 (GOV/2020/51) IAEA reports state that Iran had produced uranium enriched up to 4.5% U-235 rather than 5% U-235.

In May 2023, IAEA inspectors detected highly enriched uranium particles in the Fordow facility containing up to 83.7% u-235. Iranian officials told the IAEA that Iran had produced the particles unintentionally. The IAEA has assessed that information provided by Iran to the agency "was not inconsistent with Iran's explanation for the origin of these particles." The agency has "no further questions on the matter" (GOV/2023/24).

²⁴⁰ IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

²⁴¹ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/10; and IAEA, *Communication Dated 21 December 2016 to the Agency Sent on Behalf of High Representative Mogherini in Her Capacity as Coordinator of the Joint Commission Established Under the Joint Comprehensive Plan of Action*, INFCIRC/907, December 23, 2016.

²⁴² IAEA, *Implementation of the NPT Safeguards Agreement*, GOV/2026/33.

produced natural and enriched uranium metal, but IAEA reports indicate that Tehran has halted these activities.²⁴³

Heavy Water

Iran's stock of heavy water exceeded the JCPOA-required limit of 130 metric tons on two occasions since the JCPOA's Implementation Day in January 2016. Beginning in November 2019, IAEA reports have noted that Iran has on several additional occasions exceeded this limit. The IAEA "has lost continuity of knowledge in relation to the production and current inventory" of heavy water in Iran.²⁴⁴

²⁴³ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2021/39; and IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2022/24. Iran has not since resumed these activities, according to subsequent reports from Grossi.

²⁴⁴ IAEA, *Verification and Monitoring in the Islamic Republic of Iran*, GOV/2025/24.

Appendix B. IAEA Special Inspections

Pursuant to Iran's comprehensive safeguards agreement, if Iran were to refuse the IAEA access to certain facilities, the IAEA director general could call for a special inspection; that inspection may require approval from the IAEA Board of Governors. According to the agency, an inspection is deemed to be special when it is executed in addition to IAEA routine inspections, "involves access to information or locations" that the state has not identified to the IAEA as part of the agency's implementation of safeguards in that country, or if the agency "considers that information made available" by the state, including government explanations and "information obtained from routine inspections, is not adequate for the IAEA to fulfil its responsibilities under the [comprehensive safeguards] agreement."²⁴⁵ Such inspections "are foreseen in all Agency safeguards agreements, principally as a means for the Agency to resolve unforeseen verification problems," according to a 1991 IAEA document.²⁴⁶ Paragraph 73 of the model safeguards agreement, INFCIRC 153, states that comprehensive safeguards agreements should provide for the IAEA's ability to "make special inspections," subject to certain procedures, if the agency

considers that information made available by the State, including explanations from the State and information obtained from routine inspections, is not adequate for the Agency to fulfill its responsibilities under the Agreement.

According to the 1991 document, a special inspection could be triggered by the IAEA's receipt of "plausible information, which is not adequately explained by the State or otherwise resolved" by other IAEA inspections that the country has "nuclear material in a nuclear activity" outside of IAEA safeguards, or that the state has an undeclared nuclear facility that it had been required to report to the agency.

The IAEA director general "has the authority ... to determine the need for, and to direct the carrying out of, special inspections," according to another 1991 IAEA paper.²⁴⁷ In the event that the IAEA argues for a special inspection in a country, the agency and the government "must hold immediate consultations," according to the 1991 paper. Any dispute regarding the inspection request must be resolved according to dispute settlement provisions described in INFCIRC 153. However, paragraph 18 of INFCIRC 153 states that

if the Board, upon report of the Director General, decides that an action by the State is essential and urgent in order to ensure verification that nuclear material subject to safeguards under the Agreement is not diverted to nuclear weapons or other nuclear explosive devices the Board shall be able to call upon the State to take the required action without delay, irrespective of whether procedures for the settlement of a dispute have been invoked.

If the state refuses the inspection, the IAEA Board of Governors can take action according to paragraph 19 of INFCIRC 153, including reporting the matter to the UN Security Council.²⁴⁸

²⁴⁵ IAEA *Safeguards Glossary*. According to that glossary, special inspections can also be used "to verify the information contained in special reports." States with comprehensive safeguards agreements are required to submit a special report to the IAEA if there is a "loss of nuclear material exceeding specified limits" or if "containment and surveillance measures have been unexpectedly changed from those specified in the Subsidiary Arrangements." The IAEA negotiates changes to such arrangements with the state if alterations to the country's nuclear facilities necessitate such changes.

²⁴⁶ IAEA, GOV/INF/613, May 29, 1991.

²⁴⁷ IAEA, *Strengthening of Agency Safeguards: Special Inspections*, GOV/2554, November 12, 1991.

²⁴⁸ IAEA, *Strengthening of Agency Safeguards: Special Inspections*, GOV/2554.

Appendix C. 2003 Iranian Noncompliance with Its IAEA Safeguards Agreement

A November 2003 report from the then IAEA Director General ElBaradei to the IAEA's Board of Governors details what the September 2005 IAEA board resolution describes as "Iran's many failures and breaches of its obligations to comply with its safeguards agreement."²⁴⁹

According to the report,

Iran has failed in a number of instances over an extended period of time to meet its obligations under its Safeguards Agreement with respect to the reporting of nuclear material and its processing and use, as well as the declaration of facilities where such material has been processed and stored.

This November 2003 report details some of these failures and references other failures described in June and August 2003 reports from ElBaradei to the IAEA board.²⁵⁰

According to the June 2003 report, Iran failed to declare

- the importation of natural uranium and its subsequent transfer for further processing; and
- the processing and use of the imported natural uranium, including the production and loss of nuclear material, and the production and transfer of resulting waste.

Additionally, the June 2003 report states that Iran failed to

- declare the facilities where nuclear material (including the waste) was received, stored, and processed;
- provide in a timely manner updated design information for a research reactor located in Tehran; and
- provide in a timely manner information on two waste storage sites.

ElBaradei's August and November 2003 reports state that Iran failed to report uranium conversion experiments to the IAEA.²⁵¹ Specifically, according to ElBaradei's November 2003 report, Iran failed to declare

- the use of imported natural uranium hexafluoride for the testing of centrifuges, as well as the subsequent production of enriched and depleted uranium;
- the importation of natural uranium metal and its subsequent transfer for use in laser enrichment experiments, including the production of enriched uranium, the loss of nuclear material during these operations, and the production and transfer of resulting waste;
- the production of a variety of nuclear compounds from several different imported nuclear materials, and the production and transfer of resulting wastes; and

²⁴⁹ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2003/75; and IAEA, *NPT Safeguards Agreement with the Islamic Republic of Iran*, GOV/2005/77.

²⁵⁰ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran: Report by the Director General*, GOV/2003/40, June 19, 2003; and IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran: Report by the Director General*, GOV/2003/63, August 26, 2003.

²⁵¹ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2003/63.

- the production of uranium targets and their irradiation in the Tehran Research Reactor, the subsequent processing of those targets (including the separation of plutonium), the production and transfer of resulting waste, and the storage of unprocessed irradiated targets.²⁵²

Iran also failed to provide the agency with design information for a variety of nuclear-related facilities, according to the report. These included

- a centrifuge testing facility;
- two laser laboratories and locations where resulting wastes were processed;
- facilities involved in the production of a variety of nuclear compounds; and
- the Tehran Research Reactor (with respect to the irradiation of uranium targets), the hot cell facility where the plutonium separation took place, and the relevant waste handling facility.

In addition, the report cited Iran's "failure on many occasions to co-operate to facilitate the implementation of safeguards, through concealment" of its nuclear activities.²⁵³

²⁵² IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2003/75.

²⁵³ IAEA, *Implementation of the NPT Safeguards Agreement in the Islamic Republic of Iran*, GOV/2003/75.

Appendix D. IAEA Reports Concerning UN Security Council Resolution 2231

- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/INF/2019/8, July 1, 2019
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/INF/2019/9, July 8, 2019
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2019/32, August 30, 2019
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Acting Director General, GOV/2019/55, November 11, 2019
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Acting Director General, GOV/INF/2019/17, November 18, 2019
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2020/5, March 3, 2020
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2020/26, June 5, 2020
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2020/41, September 4, 2020
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2020/51, November 11, 2020
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2021/10, February 23, 2021
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2021/28, May 31, 2021
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2021/39, September 7, 2021
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2021/51, November 17, 2021
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2022/4, March 3, 2022

- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2022/24, May 30, 2022
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2022/39, September 7, 2022
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2022/62, November 10, 2022
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, GOV/2023/8, February 28, 2023
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2023/24, May 31, 2023
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2023/39, September 4, 2023
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2023/57, November 15, 2023
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2024/7, February 26, 2024
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2024/26, May 27, 2024
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2024/41, August 29, 2024
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2024/61, November 19, 2024
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2025/8, February 26, 2025
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2025/24, May 31, 2025
- *Verification and Monitoring in the Islamic Republic of Iran in Light of United Nations Security Council Resolution 2231 (2015)*, Report by the Director General, International Atomic Energy Agency, GOV/2025/50, September 3, 2025
- *Verification and monitoring in the Islamic Republic of Iran (GOV/2025/71)*, GOV/INF/2026/5, February 27, 2026

- *Verification and monitoring in the Islamic Republic of Iran (GOV/2025/71), GOV/INF/2026/9, June 4, 2026*

Appendix E. Extended Remarks by William Foster Regarding Possible NPT Article II Violations

On July 10, 1968, the then Arms Control and Disarmament Agency Director William Foster testified before the Senate Foreign Relations Committee about the NPT. In response to a question regarding the type of nuclear activities prohibited by Article II of the treaty, Foster supplied the following statement:

Extension of Remarks by Mr. Foster in Response to Question Regarding Nuclear Explosive Devices

The treaty articles in question are Article II, in which non-nuclear-weapon parties undertake “not to manufacture or otherwise acquire nuclear weapons or other nuclear explosive devices,” and Article IV, which provides that nothing in the Treaty is to be interpreted as affecting the right of all Parties to the Treaty “to develop research, production and use of nuclear energy for peaceful purposes ... in conformity with Articles I and II of this Treaty.” In the course of the negotiation of the Treaty, United States representatives were asked their views on what would constitute the “manufacture” of a nuclear weapon or other nuclear explosive device under Article II of the draft treaty. Our reply was as follows:

“While the general intent of this provision seems clear, and its application to cases such as those discussed below should present little difficulty, the United States believe [sic] it is not possible at this time to formulate a comprehensive definition or interpretation. There are many hypothetical situations which might be imagined and it is doubtful that any general definition or interpretation, unrelated to specific fact situations could satisfactorily deal with all such situations.

“Some general observations can be made with respect to the question of whether or not a specific activity constitutes prohibited manufacture under the proposed treaty. For example, facts indicating that the purpose of a particular activity was the acquisition of a nuclear explosive device would tend to show non-compliance. (Thus, the construction of an experimental or prototype nuclear explosive device would be covered by the term ‘manufacture’ as would be the production of components which could only have relevance to a nuclear explosive device.) Again, while the placing of a particular activity under safeguards would not, in and of itself, settle the question of whether that activity was in compliance with the treaty, it would of course be helpful in allaying any suspicion of non-compliance.

“It may be useful to point out, for illustrative purposes, several activities which the United States would not consider per se to be violations of the prohibitions in Article II. Neither uranium enrichment nor the stockpiling of fissionable material in connection with a peaceful program would violate Article II so long as these activities were safeguarded under Article III. Also clearly permitted would be the development, under safeguards, of plutonium fueled power reactors, including research on the properties of metallic plutonium, nor would Article II interfere with the development or use of fast breeder reactors under safeguards.”

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